

The Hazardous Wastes (Management And Handling) Rules, 1989

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Union of India - Act

The Hazardous Wastes (Management And Handling) Rules, 1989

UNION OF INDIA

India

The Hazardous Wastes (Management And Handling) Rules, 1989

Rule THE-HAZARDOUS-WASTES-MANAGEMENT-AND-HANDLING-RULES-1989 of 1989

Published on 28 July 1989

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The Hazardous Wastes (Management And Handling) Rules, 1989

Published vide S.O. 594(E), dated 28.7.1989, published in the Gazette of India, Ext., Pt. II, Section 3(ii), dated 28.7.1989.

10.

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In exercise of the powers conferred by sections 6, 8 and 25 of the Environment (Protection) Act, 1986 (29 of 1986

), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement .-(1) These rules may be called The Hazardous Wastes (Management and Handling) Rules, 1989.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Application .-These rules shall apply to [the handling of] hazardous wastes as specified in the [Schedules]
[Substituted by S.O. 24(E), dated 6.1.2000 (w.e.f. 6.1.2000).]

and shall not apply to-

(a)

waste-water and exhaust gases as covered under the provisions of the Water (Prevention and Control of Pollution) Act, 1974 (

6 of 1974

) and the Air (Prevention and Control of Pollution) Act, 1981 (

14 of 1981

) and rules made thereunder;

(b)

wastes arising out of the operation from ships beyond five kilometres as covered under the provisions of the Merchant Shipping Act, 1958 (

44 of 1958

) and the rules made thereunder;

(c)

radio-active wastes as covered under the provisions of the Atomic Energy Act, 1962 (

33 of 1962

) and rules made thereunder;

(d)

[bio-medical wastes covered under the Bio-Medical Wastes (Management and Handling) Rules, 1998 made under the Act;

[Inserted by S.O. 593(E), dated 20.5.2003 (w.e.f. 23.5.2003).]

(e)

wastes covered under the Municipal Solid Wastes (Management and Handling) Rules, 2000 made under the Act; and

(f)

the lead acid batteries covered under the Batteries (Management and Handling) Rules, 2001 made under the Act.]

[3. Definitions .-In these rules, unless the context otherwise requires,-

(1)

"Act" means the Environment (Protection) Act, 1986 (

29 of 1986

);

(2)

"applicant" means a person or an organisation that applies, in Form I, for granting of authorisation to perform specific activities connected with handling of hazardous wastes;

(3)

"auction" means bulk sale of wastes by invitation of tenders or auction, contract or negotiation by individual(s), companies or Government departments;

(4)

"auctioneer" means a person or an organisation that auctions wastes;

(5)

"authorisation" means permission for collection, transport, treatment, reception, storage and disposal of hazardous wastes, granted by the competent authority in Form 2;

(6)

"authorised person" means a person or an organisation authorised by the competent authority;

(7)

"Central Pollution Control Board" means the Central Board constituted under sub-section (1) of section 3 of the Water (Prevention and Control of Pollution) Act, 1974 (

6 of 1974

);

(8)

"disposal" means deposit, treatment, recycling and recovery of any hazardous wastes;

(9)

"export" with its grammatical variations and cognate expressions, means taking out of India to a place outside India;

(10)

"exporter" means any person under the jurisdiction of the exporting country which exports hazardous wastes and the exporting country itself, who exports hazardous wastes;

(11)

"environmentally sound management of hazardous wastes" means taking all steps required to ensure that the hazardous wastes are managed in a manner which will protect health and the environment against the adverse effects which may result from such wastes;

(12)

"facility" means any location wherein the processes incidental to the waste generation, collection, reception, treatment, storage and disposal are carried out;

(13)

"Form" means a Form appended to these rules;

(14)

"hazardous waste" means any waste which by reason of any of its physical, chemical, reactive, toxic, flammable, explosive or corrosive characteristics causes danger or is likely to cause danger to health or environment, whether alone or when in contact with other wastes or substances, and shall include-

(a)

wastes listed in column (3) of Schedule 1;

(b)

wastes having constituents listed in Schedule 2 if their concentration is equal to or more than the limit indicated in the said Schedule; and

(c)

wastes listed in Lists "A" and "B" of Schedule 3 (Part A) applicable only in case(s) of import or export of hazardous wastes in accordance with rules 12, 13 and 14 if they possess any of the hazardous characteristics listed in Part B of Schedule 3.

Explanation .-For the purposes of this clause,-

(i)

all wastes mentioned in column (3) of Schedule 1 are hazardous wastes irrespective of concentration limits given in Schedule 2 except as otherwise indicated and Schedule 2 shall be applicable only for wastes or waste constituents not covered under column (3) of Schedule 1;

(ii)

Schedule 3 shall be applicable only in case(s) of import or export;

(15)

"hazardous wastes site" means a place for collection, reception, treatment, storage and disposal of hazardous wastes which has been duly approved by the competent authority;

(16)

"illegal traffic" means any transboundary movement of hazardous wastes as specified in rule 15;

(17)

"import" with its grammatical variations and cognate expressions, means bringing into India from a place outside India;

(18)

"importer" means an occupier or any person who imports hazardous wastes;

(19)

"manifest" means transporting document(s) prepared and signed by the occupier in accordance with rule 7;

(20)

"non-ferrous metal wastes" means wastes listed in Schedule 4;

(21)

"operator of facility" means a person who owns or operates a facility for collection, reception, treatment, storage and disposal of hazardous wastes;

(22)

"recycler" means an occupier who procures and processes wastes for recovery;

(23)

"recycling of waste oil" means reclamation by way of treatment to separate solids and water from waste oils using methods such as heating, filtering gravity settling, centrifuging, dehydration, viscosity and specific gravity adjustment;

(24)

"registered re-refiner or recycler" means a re-refiner or recycler registered for reprocessing wastes with the Ministry of Environment and Forests or the Central Pollution Control Board, as the case may be, for reprocessing wastes;

(25)

"re-refining of used oil" means applying a process to the material composed of used oil so as to produce high quality base stock for further manufacture of lubricants or for other petroleum products by blending or any other process;

(26)

"Schedule" means a Schedule appended to these rules;

(27)

"State Government" means a State Government and in relation to a Union territory, the Administrator thereof appointed under article 239 of the Constitution;

(28)

"State Pollution Control Board or Committee" means the Board or Committee constituted under sub-section (1) of section 4 of the Water (Prevention and Control of Pollution) Act, 1974 (6 of 1974

);

(29)

"storage" means storing hazardous wastes for a temporary period, at the end of which the hazardous wastes is treated and disposed off;

(30)

"transboundary movement" means any movement of hazardous waste or other wastes from an area under the national jurisdiction of one country to or through an area under the national jurisdiction of another country or to or through an area not under the national jurisdiction of any country, provided at least two countries are involved in the movement;

(31)

"transport" means off-site movement of hazardous waste by air, rail, road or water;

(32)

"transporter" means a person engaged in the off-site transportation of hazardous waste by air, rail, road or water;

(33)

"treatment" means a method, technique or process, designed to change the physical, chemical or biological characteristics or composition of any hazardous waste so as to render such wastes harmless;

(34)

"used oil" means any oil-

(i)

derived from crude oil or mixtures containing synthetic oil including used engine oil, gear oil, hydraulic oil, turbine oil, compressor oil, industrial gear oil, heat transfer oil, transformer oil, spent oil and their tank bottom sludges; and

(ii)

suitable for re-refining if it meets the specifications laid down in Schedule 5, but does not include waste oil;

(35)

"waste oil" means any oil-

(i)

which includes spills of crude oil, emulsions, tank bottom sludge and slop oil generated from petroleum refineries, installations or ships; and

(ii)

is unsuitable for re-refining, but can be used as fuel in furnaces if it meets the specifications laid down in Schedule 6;
(36)

words and expressions used in these rules and not defined but defined in the Act shall have the meanings respectively assigned to them in the Act.]

4.
[Responsibility of the occupier and operator of a facility for handling of the wastes

.- (1) The occupier and the operator of a facility shall be responsible for proper collection, reception, treatment, storage and disposal of hazardous wastes listed in Schedules 1, 2 and 3.]

(2)
The occupier or any other person acting on his behalf who intends to get his hazardous wastes treated by the operator of a facility under sub-rule (1), shall give, to the operator of a facility, such information as may be specified by the [State Pollution Control Board or Committee]

[Substituted by S.O. 625(E), dated 3.9.1996 (w.e.f. 3.9.1996).]

Additional Information6

" Committee" means Committee notified under the Water (Prevention and Control of Pollution) Act, 1974 and the Air (Prevention and Control of Pollution) Act, 1981 in respect of Union territories, vide Rule 2 of the Hazardous Wastes (Management and Handling) Amendment Rules, 1996. [See S.O. 625(E), dated 3.9.1996].

(3)
[It shall be the responsibility of the occupier and the operator of a facility, to take all steps to ensure that the wastes listed in Schedules 1, 2 and 3 are properly handled, and disposed of without any adverse effects to the environment.]

[Inserted by S.O. 24(E), dated 6.1.2000 (w.e.f. 6.1.2000).]

[4-A. Duties of the occupier and operator of a facility

.-It shall be the duty of the occupier and the operator of a facility to take adequate steps while handling hazardous waste to,-

(i)
contain contaminants and prevent accidents and limit their consequences on human and the environment; and

(ii)
provide persons working on the site with information, training and equipment necessary to ensure their safety.

4.
-B. Duties of the authority .-Subject to the provisions of these rules, the authority shall also perform duties as specified in column 3 of [Schedule 7].]

5.
Grant of authorisation for handling hazardous wastes .-(1) Hazardous wastes shall be collected, treated, stored and disposed of only in such facilities as may be authorised for this purpose.

(2)
Every occupier handling, or a recycler recycling, hazardous wastes shall make an application in Form 1 to the Member-Secretary, State Pollution Control Board or Committee, as the case may be or any officer designated by the State Pollution Control Board or Committee for the grant of authorisation for any of the said activities:

Provided that an occupier or a recycler not having a hazardous wastes treatment and disposal facility of his own and is operating in an area under the jurisdiction assigned by the State Pollution Control Board or Committee, as the case may be, for a common Treatment, Storage and Disposal Facility (TSDF) shall become a member of this facility and send his waste to this facility to ensure proper treatment and disposal of hazardous wastes generated failing which the authorisation granted to the said occupier or recycler in accordance with this sub-rule may be cancelled after giving a reasonable opportunity to such occupier or recycler, as the case may be, of being heard or shall not to be granted by the State Pollution Control Board or Committee, as the case may be.

(3)
[Any person who intends to be an operator of a facility for the collection, reception, treatment, transport, storage and disposal of hazardous wastes, shall make an application in Form 1 to the Member-Secretary, State Pollution Control Board or Committee for the grant of authorisation for all or any of the above activities specified in this rule.]

(4)

The [Member-Secretary, [State Pollution Control Board or any officer designated by the Board]

[Inserted by S.O. 24(E), dated 6.1.2000 (w.e.f. 6.1.2000).]

[or Committee]

[Inserted by S.O. 24(E), dated 6.1.2000 (w.e.f. 6.1.2000).]

shall not issue an authorisation unless it is satisfied that the operator of a facility or an occupier, as the case may be, possesses appropriate facilities, technical capabilities and equipment to handle hazardous wastes safely.

[(4-A) The authorisation application complete in all respects shall be processed by the State Pollution Control Boards within ninety days of the receipt of such application.]

[Substituted by S.O. 24(E), dated 6.1.2000 (w.e.f. 6.1.2000).]

(5)

The authorisation to operate a facility shall be issued in Form 2 and shall be subject to conditions laid down therein.

(6)

[(i) An authorisation granted under this rule shall, unless suspended or cancelled, be in force during the period of its validity as specified by the State Pollution Control Board or Committee from the date of issue or from the date of renewal, as the case may be.]

[Substituted by S.O. 593(E), dated 20.5.2003 (w.e.f. 23.5.2003).]

(ii)

An application for the renewal of an authorisation shall be made in Form 1, before its expiry.

(iii)

The authorisation shall continue to be in force until it is renewed or revoked.

(7)

The [Member-Secretary, [State Pollution Control Board or any officer designated by the Board]

[Substituted by S.O. 24(E), dated 6.1.2000 (w.e.f. 6.1.2000).]

[or Committee]

[Substituted by S.O. 24(E), dated 6.1.2000 (w.e.f. 6.1.2000).]

may, after giving reasonable opportunity of being heard to the applicant, refuse to grant any authorisation.

(8)

[The Member-Secretary, State Pollution Control Board or any officer designated by the Board shall renew the authorisation granted under sub-rule (6), after examining each case on merit, subject to the following,-]

[Inserted by S.O. 24(E), dated 6.1.2000 (w.e.f. 6.1.2000).]

(i)

on submission of annual returns by the occupier or operator of facility in Form 4;

(ii)

[on steps taken, by the applicant wherever feasible, for reduction and prevention in the waste generated or for recycling or reuse;]

[Substituted by S.O. 593(E), dated 20.5.2003 (w.e.f. 23.5.2003).]

(iii)

on fulfilment of conditions prescribed in the authorisation regarding management in an environmentally sound manner of wastes; and

[* * *]

[Clause (iv) omitted by S.O. 593(E), dated 20.5.2003 (w.e.f. 23.5.2003).]

(9)

[Every State Pollution Control Board or Committee shall maintain a register containing particulars of the conditions imposed under these rules for any disposal of hazardous wastes, on any land or premises and it shall be open for inspection during office hours to any person interested or affected or a person authorised by him in this behalf. The entries in the register shall be considered as proof of grant of authorisation for management and handling of hazardous wastes on such land or premises and the conditions subject to which it was granted.]

[Inserted by S.O. 593(E), dated 20.5.2003 (w.e.f. 23.5.2003).]

6.

Power to suspend or cancel an authorisation .-(1) The [State Pollution Control Board or Committee] may cancel an authorisation issued under these rules or suspend it for such period as it thinks fit, if in its opinion, the authorised person

has failed to comply with any of the conditions of the authorisation or with any provisions of the Act or these rules, after giving the authorised person an opportunity to show cause and after recording reasons therefor.

(2)

Upon suspension or cancellation of the authorisation and during the pendency of an appeal under rule 12, the [State Pollution Control Board or Committee]

[Substituted by S.O. 625(E), dated 3.9.1996 (w.e.f. 3.9.1996).]

may give directions to the persons whose authorisation has been suspended or cancelled for the safe storage of the hazardous wastes, and such person shall comply with such directions.

7.

Packaging, labelling and transport of hazardous wastes .- [(1) The occupier or operator of a facility shall ensure that the hazardous wastes are packaged, based on the composition in a manner suitable for handling, storage and transport and the labelling and packaging shall be easily visible and be able to withstand physical conditions and climatic factors.

(2)

Packaging, labelling and transport of hazardous wastes shall be in accordance with the provisions of the rules made by the Central Government under the Motor Vehicles Act, 1988 (

59 of 1988

) and other guidelines issued from time to time.]

(3)

[All hazardous waste containers shall be provided with a general label as given in Form 8.]

[Inserted by S.O. 24(E), dated 6.1.2000 (w.e.f. 6.1.2000).]

(4)

[The occupier shall prepare six copies of the manifest in Form 9 comprising of colour code indicated below (all six copies to be signed by the transporter):

Copy number with colour code

Purpose

Copy 1 (white)

to be forwarded by the occupier to the State Pollution Control Board or Committee.

Copy 2 (yellow)

to be retained by the occupier after taking signature on it from the transporter and rest of the four copies to be carried by the transporter.

Copy 4 (Orange)

to be returned to the transporter by the operator of the facility after accepting waste.

Copy 5 (green)

to be returned by the operator of the facility to State Pollution Control Board/Committee after treatment and disposal of wastes.

Copy 6 (blue)

to be returned by the operator of the facility to the occupier after treatment and disposal of wastes.

(5)

The occupier shall forward copy number 1 (white) to the State Pollution Control Board or Committee and in case the hazardous waste is likely to be transported through any transit State, the occupier shall prepare an additional copy each for such State and forward the same to the concerned State Pollution Control Board or Committee before he hands over the hazardous waste to the transporter. No transporter shall accept hazardous wastes from an occupier for transport unless it is accompanied by copy numbers 2 to 5 of the manifest. The transporter shall return copy number 2 (yellow) of the manifest signed with date to the occupier as token of receipt of the other four copies of the manifest and retain the remaining four copies to be carried and handed over to respective agencies as specified in sub-rule (4).

(6)

In case of transport of hazardous wastes to a facility for treatment, storage and disposal existing in a State other than the State where hazardous wastes are generated, the occupier shall obtain "No Objection Certificate" from the State Pollution Control Board or Committee of the concerned State or Union Territory Administration where the facility is existing.]

[Substituted by S.O. 593(E), dated 20.5.2003 (w.e.f. 23.5.2003). Earlier these sub-rules (4), (5) and (6) was inserted by

S.O. 24(E), dated 6.1.2000 (w.e.f. 6.1.2000).]

(7)

[The occupier shall provide the transporter with relevant information in Form 10, regarding the hazardous nature of the wastes and measures to be taken in case of an emergency.]

[Inserted by S.O. 24(E), dated 6.1.2000 (w.e.f. 6.1.2000).]

8.

[Disposal sites

-(1) The occupier or any operator of a facility or any association of occupiers shall be jointly and severally responsible for identifying sites for establishing the facility for treatment, storage and disposal of hazardous wastes.

(2)

The State Government, operator of a facility or any association of occupiers shall jointly and severally be responsible for, and identify sites for common facility for treatment, storage and disposal of hazardous wastes in the State.

(3)

The operator of a facility, occupier or any association of occupiers shall undertake an environment impact assessment (EIA) of the selected site(s) and shall submit the EIA report to the State Pollution Control Board or Committee.

(4)

The State Pollution Control Board or Committee shall on being satisfied with the EIA report, cause a public notice for conducting a public hearing as per the procedure contained in the Environment Impact Assessment Notification, 1994 published vide S.O. 60(E), dated 27th January, 1994 as amended from time to time.

(5)

The State Pollution Control Board or Committee shall forward to the State Government or Union Territory Administration, as the case may be the project report including EIA report and details of public hearing alongwith its recommendations within a period of 30 days from the last date of public hearing.

(6)

The State Government shall complete the assessment within a period of thirty days from the date of receipt of the documents mentioned in sub-rule (5) and convey the decision of its approval of site(s) or otherwise within 30 days thereafter to the concerned operator of the facility, occupier or any association of occupiers.

(7)

After approval of the site or sites, the State Government shall acquire the site(s) or inform the occupier or any operator of facility, or any association of occupiers to acquire the site(s) for setting up the facility for treatment, storage and disposal of hazardous wastes. The State Government shall simultaneously notify such site(s). The State Government shall also compile and publish periodically and inventory of such hazardous wastes disposal sites and facilities.

(8)

Setting up of an on-site facility for treatment, storage and disposal of hazardous wastes for captive use shall be governed by the authorisation procedure laid down in rule 5.]

[8-A. Design and setting up of disposal facility

-(1) The occupier, any association or operator of a facility, as the case may be, shall design and set up disposal facility as per the guidelines issued by the Central Government or the State Government, as the case may be.

(2)

The occupier, any association or operator, shall before setting up a disposal facility get the design and the layout of the facility approved by the State Pollution Control Board.

(3)

The State Pollution Control Board shall monitor the setting up and operation of a facility regularly.

8.

-B. Operation and closure of landfill site -(1) The occupier or the operator as the case may be, shall be responsible for safe and environmentally sound operation of the facility as per design approved under rule 8-A by the State Pollution Control Board;

(2)

The occupier or the operator shall ensure that the closure of the landfill is as per the design approved under rule 8-A by the State Pollution Control Board.]

9.

Records and returns .-(1) The occupier generating hazardous waste and operator of a facility for collection, reception, treatment, transport, storage and disposal of hazardous waste shall maintain records of such operations in Form 3.

(2)

The occupier and operator of a facility shall send annual returns to the [State Pollution Control Board or Committee] in Form 4.

(3)

[The State Pollution Control Board or Committee shall prepare an inventory of hazardous wastes as nearly as possible to Form 4 within its jurisdiction and compile other related information like treatment and disposal of hazardous wastes based on the returns filed by respective occupier and operator of facility as per sub-rule (2).]

[Inserted by S.O. 593(E), dated 20.5.2003 (w.e.f. 23.5.2003).]

10. Accident reporting and follow-up .-Where an accident occurs at the facility or on a hazardous waste site or during transportation of hazardous wastes, the occupier or operator of a facility shall report immediately to the [State Pollution Control Board or Committee] about the accident in Form 5.

11.

[Import and export of hazardous wastes for dumping and disposal

.-Import of hazardous wastes from any country to India and export of hazardous wastes from India to any country for dumping or disposal shall not be permitted.]

12.

[Import and export of hazardous wastes for recycling and reuse

.- (1) Save as otherwise provided, no person shall import or export hazardous wastes or substances containing or contaminated with such hazardous wastes as specified in Schedule 8.

(2)

The Ministry of Environment and Forests shall be the nodal Ministry to deal with the trans-boundary movement of hazardous wastes and to grant permission of transit of hazardous wastes through any part of India.

(3)

Import and export of hazardous wastes shall be permitted as raw material for recycling or reuse.

(4)

The authorities mentioned in column 2 of Schedule 7 shall be responsible for regulation of export and import of hazardous wastes.

(5)

Any occupier importing or exporting hazardous wastes shall provide detailed information in Form 7-A to the Customs authorities.

(6)

Any occupier importing or exporting hazardous wastes shall comply with the articles of the Basel Convention to which the Central Government is a signatory.

(7)

In case of any dispute as to the grant of permission to import or export of hazardous wastes, the matter shall be referred to the Central Government for a decision.]

13.

[Import of hazardous waste

.- [(1) Every occupier seeking to import hazardous wastes shall apply to the State Pollution Control Board or Committee at least 120 days in advance of the intended date of commencement of the shipment in Form 6.]

(2)

[The State Pollution Control Board shall examine the application received from the occupier within thirty days and forward the application with recommendation and requisite stipulations for safe transport, storage and processing, to the Ministry of Environment and Forests.

(3)

The Ministry of Environment and Forests, Government of India will examine the application received from the State Pollution Control Board and after satisfying itself will grant permission for imports subject to the following:-

(a)

environmentally friendly/appropriate technology used for re-processing;

- (b) the capability of the importer to handle and reprocess hazardous wastes in an environmentally sound manner;
- (c) presence of adequate facility for treatment and disposal of wastes generated; and
- (d) approvals, no objection certificates and authorisations from all concerned authorities; and

[* * *]

(4)
[The Ministry of Environment and Forests, Government of India, shall forward a copy of the permission granted, to the Central Pollution Control Board, the State Pollution Control Board and the concerned port and customs authorities for ensuring compliance of the conditions of imports and to take appropriate steps for safe handling of the waste at the time of off-loading.

(5)
An application for licence to the Directorate-General of Foreign Trade for import shall be accompanied with the permission granted by the Ministry of Environment and Forests, Government of India under sub-rule (3) to the importer and an authenticated copy of Form 7 of the exporter under sub-rule (3) of rule 14.

(6)
The port and custom authorities shall ensure that the shipping document is accompanied with an authenticated copy of Form 7 and the test report from an accredited laboratory of analysis of the hazardous waste shipped.

(7)
The occupier having valid permission to import shall inform the State and Central Pollution Control Board and the port authorities of the arrival of the consignment of hazardous wastes ten days in advance.

(8)
The occupier importing hazardous waste shall maintain the records of hazardous waste imports as specified in Form 6-A and the record so maintained shall be available for inspection.]

[Inserted by S.O. 24(E), dated 6.1.2000 (w.e.f. 6.1.2000).]

[Inserted by S.O. 24(E), dated 6.1.2000 (w.e.f. 6.1.2000).]

(9)
[An occupier importing hazardous wastes listed under an Open General Licence of the Directorate-General of Foreign Trade shall register himself with the Ministry of Environment and Forests or any other authority or agency such as the Central Pollution Control Board designated by it in accordance with the procedure laid down under rule 19.]

[Inserted by S.O. 593(E), dated 20.5.2003 (w.e.f. 23.5.2003).]

14.

[Export of hazardous waste

-(1) The exporting country or the exporter as the case may be, of hazardous waste shall apply ninety days in advance in Form 7 to the Ministry of Environment and Forests, Government of India, seeking permission for the proposed export and transboundary movement.

(2)
The Ministry of Environment and Forests Government of India, on receipt of such Form 7 from an exporter or an exporting country shall examine the case on merit and grant or refuse permission for export to India.

(3)
The Ministry of Environment and Forests shall communicate the grant of permission by authentication on Form 7 to the exporter and the exporting country and endorse a copy of the same to the Central Pollution Control Board and the State Pollution Control Board.

(4)
The exporter shall ensure that no consignment is shipped prior to the requisite authentication being received. The exporter shall also ensure that the shipping document is accompanied with Form 7-A, an authenticated copy of Form 7 and an authenticated copy of the test report from an accredited laboratory of analysis of the hazardous waste.

(5)
The occupier, exporting hazardous waste to any other country shall seek permission from the competent authority of that country prior to any shipment.

(6)

Every occupier exporting hazardous waste shall inform the Central Government of the permission sought for exporting, permission granted for export and details of the export in Form 7.]

15.

Illegal traffi c.-(1) The movement of hazardous wastes from or to the country shall be considered illegal:-

(i)

if it is without prior permission of the Central Government;

(ii)

if the permission has been obtained through falsification, misrepresentation or fraud; or

(iii)

it does not conform to the shipping details provided in the document;

(2)

In case of illegal movement, the hazardous wastes in question-

(i)

shall be shipped back within thirty days either to the exporter or to the exporting country;

(ii)

shall be disposed of within thirty days from the date of off-loading subject to inability to comply with sub-rule (2)(i) above [in accordance with the procedure laid down by the State Pollution Control Board or Committee in consultation with Central Pollution Control Board].

(3)

In case of illegal transboundary movement of hazardous wastes, the occupier exporting hazardous waste from the country or the exporter exporting hazardous waste to the country and importer importing hazardous waste into the country shall ensure that the wastes in question is safely stored and shipped or disposed of in an environmentally sound manner within thirty days from the date of off-loading.

(4)

The exporting country shall bear the costs incurred for the disposal of such wastes.

16.

Liability of the occupier, transporter and operator of a facility .-(1) The occupier, transporter and operator of a facility shall be liable for damages caused to the environment resulting due to improper handling and disposal of hazardous waste listed in Schedules 1, 2 and 3;

(2)

[The occupier and operator of a facility shall also be liable to reinstate or restore damaged or destroyed elements of the environment at his cost, failing which the occupier or the operator of a facility, as the case may be, shall be liable to pay the entire cost of remediation or restoration and pay in advance an amount equal to the cost estimated by the State Pollution Control Board or Committee. Thereafter, the Board or Committee shall plan and cause to be executed the programme for remediation or restoration. The advance paid to State Pollution Control Board or Committee towards the cost of remediation or restoration shall be adjusted once the actual cost of remediation or restoration is finally determined and the remaining amount, if any, shall be recovered from the occupier or the operator of the facility.]

(3)

The occupier and operator of a facility shall be liable to pay a fine as levied by the State Pollution Control Board with the approval of the Central Pollution Control Board for any violation of the provisions under these rules.

17.

Transitional provisions .-Where-

(a)

on the date of coming into operation of these rules, an occupier handling hazardous wastes who is required to comply with the provisions of these rules, it will be sufficient compliance if the occupier and the authorities do so within three months after the date of coming into force of these rules;

(b)

State Pollution Control Boards and Pollution Control Committees are required to oversee the compliance.

18.

[Appeal

-(1) An appeal shall lie, against any order of grant or refusal of an authorisation by the Member-Secretary, State Pollution Control Board or any officer designated by the Board to the Secretary, Department of Environment of the State Government by whatever name called.

(2)

Every appeal shall be in writing and shall be accompanied by a copy of the order appealed against and shall be presented within thirty days of the receipt of the order passed.]

(3)

[Every appeal filed under this rule shall be disposed of within a period of sixty days from the date of such filing.]

[Inserted by S.O. 593(E), dated 20.5.2003 (w.e.f. 23.5.2003).]

19.

[Procedure for registration and renewal of registration of recyclers and re-refiners

-(1) Every person desirous of recycling or re-refining non-ferrous metal wastes as specified in Schedule 4 or used oil or waste oil shall register himself with the Central Pollution Control Board:

Provided that no owner or occupier of an industrial unit having captive recycling of non-ferrous metals or recycling of waste oil or re-refining of used oil facility shall be required to register under these rules:

Provided further that no person who has registered with the Ministry of Environment and Forests before the commencement of the Hazardous Wastes (Management and Handling) Amendment Rules, 2003, shall, unless such registration is cancelled or ceases to operate under sub-rule (3) of rule 21, be required to register under this sub-rule as given in the certificate of registration.

(2)

Every application for registration under this rule shall be made in Form 11 alongwith a copy each of the following documents to the Central Pollution Control Board for the grant of such registration or renewal:-

(a)

letter of consents granted under the Water (Prevention and Control of Pollution) Act, 1974 and the Air (Prevention and Control of Pollution) Act, 1981;

(b)

authorisation granted under rule 5 of these rules;

(c)

certificate of registration with District Industries Centre;

(d)

proof of installed capacity of plant and machinery issued by either State Pollution Control Board or Committee or the District Industries Centre; and

(e)

report from the State Pollution Control Board or Committee regarding proof of compliance of effluent and emission standards and treatment and disposal of hazardous wastes as stipulated by that Board or Committee.

(3)

If the Central Pollution Control Board is satisfied that the recyclers or re-refiners possess requisite facilities, technical capabilities, and equipment to recycle or re-refine the wastes and dispose of the hazardous wastes generated, it shall grant a certificate of registration to such recycler or re-refiner, as the case may be.

(4)

The Central Pollution Control Board shall dispose of the application for registration within 120 days of receipt of such application with complete details.

(5)

The certificate of registration granted under sub-rule (3) shall be valid for a period of two years from the date of its issue unless suspended or cancelled earlier.

(6)

Every application for renewal of registration of a certificate of registration granted under sub-rule (3) shall be made in Form 11 alongwith the documents mentioned in sub-rule (2) at least two months before the expiry of the period of validity of such certificate. The Central Pollution Control Board shall renew the registration of the recycler or re-refiner granted under sub-rule (3) after examining each case on merit.

(7)

The Central Pollution Control Board may, after giving reasonable opportunity to the applicant of being heard, by order, refuse to grant certificate of registration or renewal.

(8)

The Central Pollution Control Board may cancel or suspend a registration or renewal granted under these rules, if in its opinion the registered recycler has failed to comply with any of the conditions of registration, or with any provisions of the Act or rules made thereunder after giving him an opportunity of being heard and after recording the reasons therefor.

(9)

An appeal against any order of suspension or cancellation or refusal of registration or renewal passed by Central Pollution Control Board shall lie with the Secretary, Ministry of Environment and Forests (hereafter referred to as the appellate authority).

(10)

The memorandum of appeal under sub-rule (9) shall be in writing and shall be accompanied with a copy of the order appealed against and shall be presented within 30 days of passing of the order:

Provided that the appellate authority may allow a memorandum of appeal to be filed after the expiry of the said period of thirty days, but in no case later than 45 days if the appellate authority is satisfied that there exists sufficient cause for not preferring the appeal in time.

(11)

On receipt of a memorandum of appeal under sub-rule (9) the appellate authority shall within ninety days from the date of receipt of such memorandum of appeal and after giving the appellant an opportunity of being heard pass such order as he may deem fit.

(12)

In case of units registered with the Ministry of Environment and Forests or the Central Pollution Control Board for items placed under "free category" in Notification Nos. 22 (RE-99) 1997-2002 dated 30th July, 1999; 26 (RE-99) 1997-2002 dated 10th September, 1999; 38 (RE-2000) 1997-2002 dated 16th October, 2000 and 6 (RE-2001) dated 31st March, 2001 issued by the Directorate-General of Foreign Trade and other similar notifications issued based on the advice of Ministry of Environment and Forests, prior import permission from that Ministry shall not be required.

(13)

Recyclers and re-refiners registered with the Government of India in the Ministry of Environment and Forests or the Central Pollution Control Board shall maintain a record of wastes purchased, processed and sold and shall file an annual return in Form 12 to the respective State Pollution Control Board or Committee, as the case may be, latest by 31st January of every year.

20.

Responsibility of waste generator .-(1) No owner or occupier generating non-ferrous metal waste specified in Schedule 4 or generating used oil or waste oil of ten tons or more per annum shall sell or auction such non-ferrous metal wastes, used oil or waste oil except to a registered re-refiner or recycler, as the case may be, who undertakes to re-refine or recycle the waste within the period of validity of his certificate of registration.

(2)

Any waste oil which does not meet the specifications laid down in Schedule 6 shall not be auctioned or sold but shall be disposed of in hazardous wastes incinerator installed with air pollution control devices and meeting emission standards.

(3)

The persons generating waste or auctioneers shall ensure that at the time of auction or sale, the period of validity of the certificate of registration of the registered re-refiner or recycler is sufficient to reprocess the quantity of wastes being sold or auctioned to him.

(4)

The waste generators and auctioneers shall ensure that the wastes are not allowed to be stored for more than ninety days and shall maintain a record of auctions and sale of such wastes and make these records available to the State Pollution Control Board or Committee for inspections.

(5)

The waste generators and auctioneers shall file annual returns of auction and sale in Form 13 latest by 31st day of January of every year to the respective State Pollution Control Board or Committee.

21.

Technology and standards for re-refining or recycling .-(1) Re-refiners and recyclers shall use only environmentally sound technologies while recycling and re-refining non-ferrous metal wastes or used oil or waste oil. In case of used oil, re-finers using acid clay process or modified acid clay process shall switch over within six months from the date of commencement of the Hazardous Wastes (Management and Handling) Amendment Rules, 2003 to other environmentally sound technologies as under:-

(a)

Vacuum distillation with clay treatment;

(b)

Vacuum distillation with hydrotreating;

(c)

Thin film evaporation process; or

(d)

Any other technology approved by the Ministry of Environment and Forests.

(2)

[The re-refiners and recyclers registered with the Ministry of Environment and Forests or the Central Pollution Control Board in accordance with the procedure laid down in rule 19 shall file a compliance report of having adopted one of the technologies mentioned in sub-rule (1) on or before 31 December, 2004 to the Central Pollution Control Board.

Explanation .-This shall be applicable only to re-refiners and recyclers subject to the conditions that the re-refiners and recyclers shall submit-

(i)

copy of the order placed for purchase of plant and machinery for switchover to one of the approved technologies specified under sub-rule (1) of rule 21 of these rules upto 15th August, 2004; and

(ii)

bank guarantee, valid upto 31st January, 2005, for an amount of five lakh rupees in favour of Central Pollution Control Board, New Delhi upto 15th August, 2004.]

(3)

[Notwithstanding anything contained in a certificate of registration granted to a recycler or re-refiner, such registration with the Ministry of Environment and Forests shall cease to be valid if he fails to comply with sub-rule (1).

(4)

The State Pollution Control Board or Committee shall inspect the re-refining and recycling units within three months of the expiry of the six months period referred to in sub-rule (1) and submit a compliance report to the Central Pollution Control Board which shall compile such information and furnish the same to the Ministry of Environment and Forests on a regular basis.

(5)

The Ministry of Environment and Forests shall notify from time-to-time specifications and standards to be followed by recyclers and re-refiners.]

[Added by S.O. 593(E), dated 20.5.2003 (w.e.f. 23.5.2003).]

[SCHEDULE 1]

[Substituted by S.O. 593(E), dated 20.5.2003 (w.e.f. 23.5.2003).]

[See rule 3(14)(a)]

LIST OF HAZARDOUS WASTES

S.No.

Processes

Hazardous Wastes

1

2

3

1.

Petrochemical processes and pyrolytic operations

1.1

Furnace/reactor residue and debris*

- 1.2
Tarry residues
- 1.3
Oily sludge emulsion
- 1.4
Organic residues
- 1.5
Residues from alkali wash of fuels
- 1.6
Still bottoms from distillation process
- 1.7
Spent catalyst and molecular sieves
- 1.8
Slop oil from wastewater
- 1.9
ETP sludge containing hazardous constituents
- 2.
Drilling operation for oil and gas production
 - 2.1
Drill cuttings containing oil
 - 2.2
Sludge containing oil
 - 2.3
Drilling mud and other drilling wastes*
- 3.
Cleaning, emptying and maintenance of petroleum oil storage tanks including ships
 - 3.1
Oil-containing cargo residue, washing water and sludge
 - 3.2
Chemical-containing cargo residue and sludge
 - 3.3
Sludge and filters contaminated with oil
 - 3.4
Ballast water containing oil from ships.
- 4.
Petroleum refining/re-refining of used oil/recycling of waste oil
 - 4.1
Oily sludge/emulsion
 - 4.2
Spent catalyst
 - 4.3
Slop oil
 - 4.4
Organic residues from process
 - 4.5
Chemical sludge from waste water treatment
 - 4.6
Spent clay containing oil
- 5.
Industrial operations using mineral/synthetic oil as lubricant in hydraulic systems or other applications
 - 5.1

Used/spent oil

5.2

Wastes/residues containing oil

6.

Secondary production and/or use of zinc

6.1

Sludge and filter press cake arising out of zinc sulphate production

6.2

Zinc fines/dust/ash/skimmings (dispersible form)

6.3

Other residues from processing of zinc ash/skimmings

6.4

Flue gas dust and other particulates*

7.

Primary production of zinc/lead/copper and other non-ferrous metals except aluminium

7.1

Flue gas dust from roasting*

7.2

Process residues

7.2

Arsenic-bearing sludge

7.3

Metal bearing sludge and residue including jarosite

7.4

Sludge from ETP and scrubbers

8.

Secondary production of copper

8.1

Spent electrolytic solutions

8.2

Sludges and filter cakes

8.3

Flue gas dust and other particulates*

9.

Secondary production of lead

9.1

Lead slag/Lead bearing residues

9.2

Lead ash/particulate from flue gas

10.

Production and/or use of cadmium and arsenic and their compounds

10.1

Residues containing cadmium and arsenic

11.

Production of primary and secondary aluminium

11.1

Sludges from gas treatment

11.2

Cathode residues including pot lining wastes

11.3

Tar containing wastes

11.4

Flue gas dust and other particulates*

11.5

Wastes from treatment of salt slags and black drosses*

12.

Metal surface treatment, such as etching, staining, polishing, galvanising, cleaning, degreasing, plating, etc.

12.1

Acid residues

12.2

Alkali residues

12.3

Spent bath/sludge containing sulphide, cyanide and toxic metals

12.4

Sludge from bath containing organic solvents

12.5

Phosphate sludge

12.6

Sludge from staining bath

12.7

Copper etching residues

12.8

Plating metal sludge

12.9

Chemical sludge from waste water treatment

13.

Production of iron and steel including other ferrous alloys (electric furnaces; steel rolling and finishing mills; Coke oven and by product plant)

13.1

Process dust *

13.2

Sludge from acid recovery unit

13.3

Benzolacid sludge

13.4

Decanter tank tar sludge

13.5

Tar storage tank residue

14.

Hardening of steel

14.1

Cyanide-, nitrate-, or nitrite-containing sludge

14.2

Spent hardening salt

15.

Production of asbestos or asbestos-containing materials

15.1

Asbestos-containing residues

15.2

Discarded asbestos

15.3

Dust/particulates from exhaust gas treatment.

- 16.
Production of caustic soda and chlorine
- 16.1
Mercury bearing sludge
- 16.2
Residue/sludges and filter cakes*
- 16.3
Brine sludge containing mercury
- 17.
Production of acids
- 17.1
Residues, dusts or filter cakes*
- 17.2
Spent catalyst*
- 18.
Production of nitrogenous and complex fertilizers
- 18.1
Spent catalyst*
- 18.2
Spent carbon*
- 18.3
Sludge/residue containing arsenic
- 18.4
Chromium sludge from water cooling tower
- 18.5
Chemical sludge from waste water treatment
- 19.
Production of phenol
- 19.1
Residue/sludge containing phenol
- 20.
Production and/or industrial use of solvents
- 20.1
Contaminated aromatic, aliphatic or napthenic solvents not fit for originally intended use
- 20.2
Spent solvents
- 20.3
Distillation residues
- 21.
Production and/or industrial use of paints, pigments, lacquers, varnishes, plastics and inks
- 21.1
Wastes and residues
- 21.2
Fillers residues
- 22.
Production of plastic raw materials
- 22.1
Residues of additives used in plastics manufacture like dyestuffs, stabilizers, flame retardants, etc.
- 22.2
Residues of plasticisers
- 22.3

Residues from vinylchloride monomer production

22.4

Residues from acrylonitrile production

22.5

Non-polymerised residues

23.

Production and/or industrial use of glues, cements, adhesive and resins

23.1

Wastes/residues (not made with vegetable or animal materials)*

24.

Production of canvas and textiles

24.1

Textile chemical residues*

24.2

Chemical sludge from waste water treatment

25.

Industrial production and formulation of wood preservatives

25.1

Chemical residues

25.2

Residues from wood alkali bath

26.

Production or industrial use of synthetic dyes, dye-intermediates and pigments

26.1

Process waste sludge/residues containing acid or other toxic metals or organic complexes

26.2

Chemical sludge from waste water treatment

26.3

Dust from air filtration system

27.

Production or industrial use of materials made with organo-silicone compounds

27.1

Silicone-containing residues

27.2

Silicone oil residues

28.

Production/formulation of drugs/

pharmaceuticals

28.1

Residues and wastes*

28.2

Spent catalyst/spent carbon

28.3

Off specification products

28.4

Date-expired, discarded and off-specification drugs/ medicines

28.5

Spent mother liquor

28.6

Spent organic solvents

29.

Production, use and formulation of pesticides including stock-piles

29.1

Wastes/residues containing pesticides

29.2

Chemical sludge from waste water treatment

29.3

Date-expired and off-specification pesticides

30.

Leather tanneries

30.1

Chromium bearing residue and sludge

30.2

Chemical sludge from waste water treatment

31.

Electronic Industry

31.1

Residues and wastes*

31.2

Spent etching chemicals and solvents

32.

Pulp & Paper Industry

32.1

Spent chemicals

32.2

Corrosive wastes arising from use of strong acid and bases

32.3

Sludge containing absorbable organic halides

33.

Disposal of barrels/containers used for handling of hazardous wastes/chemicals

33.1

Chemical-containing residue from decontamination and disposal

33.2

Sludge from treatment of waste water arising out of cleaning/disposal of barrels/containers

33.3

Discarded containers/barrels/liners used for hazardous wastes/chemicals

34.

Purification processes for air and water

34.1

Flue gas cleaning residue*

34.2

Toxic metal-containing residue from used-ion exchange material in water purification

34.3

Chemical sludge from waste water treatment

34.4

Chemical sludge, oil and grease skimming residues from common industrial effluent treatment plants (CETPs) and industry-specific effluent treatment plants (ETPs)

34.5

Chromium sludge from cooling water treatment

35.

Purification process for organic compounds/solvents

35.1

Filters and filter material which have organic liquids in them, e.g. mineral oil, synthetic oil and organic chlorine compounds

35.2

Spent catalyst*

35.3

Spent carbon*

36.

Waste treatment processes, e.g.

incineration, distillation, separation and concentration techniques

36.1

Sludge from wet scrubbers

36.2

Ash from incineration of hazardous waste, flue gas cleaning residues

36.3

Spent acid from batteries

36.4

Distillation residues from contaminated organic solvents.

[SCHEDULE 2]

[Substituted by S.O. 593(E), dated 20.5.2003 (w.e.f. 23.5.2003).]

[See rule 3(14)(b)]

LIST OF WASTES CONSTITUENTS WITH CONCENTRATION LIMITS

CLASS A

Concentration limit: $\leq$ 50mg/kg

A1

Antimony and antimony compounds

A2

Arsenic and arsenic compounds

A3

Beryllium and beryllium compounds

A4

Cadmium and cadmium compounds

A5

Chromium (VI) compounds

A6

Mercury and mercury compounds

A7

Selenium and selenium compounds

A8

Tellurium and tellurium compounds

A9

Thallium and thallium compounds

A10

Inorganic cyanide compounds

A11

Metal carbonyls

A12

Napthalene

A13

Anthracene

A14

Phenanthrene

A15

Chrysene, benzo

(a) anthracene, fluoranthene, benzo (a) pyrene, benzo (K) fluoranthene, indeno (1, 2, 3-cd) pyrene and benzo (ghi) perylene

A16

Halogenated compounds of aromatic rings, e.g. polychlorinated biphenyls, polychloroterphenyls and their derivatives

Waste constituents and their concentration limits given in this list are based on BAGA (the Netherlands Environment Protection Agency) List of Hazardous Substances. In order to decide whether a specific material listed above is hazardous or not, following points be taken into consideration:

(i) If a component of the waste appears in one of the five risk classes listed above

(A, B, C, D or E) and the concentration of the component is equal to or more than the limit for the relevant risks class, the material is then classified as hazardous waste.

(ii) If a chemical compound containing a hazardous constituent is present in the waste, the concentration limit does not apply to the compound, but only to the hazardous constituent itself.

(iii) If multiple hazardous constituents from the same class are present in the waste, the concentrations are added together.

(iv) If multiple hazardous constituents from different classes are present in the waste, the lowest concentration limit corresponding to the constituent(s) applies.

(v) For substances in water solution, the concentration limit for dry matter must be used. If the dry matter content is less than 0.1% by weight, the concentration limit, reduced by a factor of one thousand, applies to the solution.

A17

Halogenated aromatic compounds

A18

Benzene

A19

Organo-chlorine pesticides

A20

Organo-tin Compounds

CLASS B

Concentration limit: 5,000 mg/kg

B1

Chromium (III) compounds

B2

Cobalt compounds

B3

Copper compounds

B4

Lead and lead compounds

B5

Molybdenum compounds

B6

Nickel compounds

B7

Inorganic Tin compounds

B8

Vanadium compounds

B9

Tungsten compounds

B10

Silver compounds

B11

Halogenated aliphatic compounds

B12

Organophosphorus compounds

B13

Organic peroxides

B14

Organic nitro-and nitroso-compounds

B15

Organic azo-and azoxy compounds

B16

Nitriles

B17

Amines

B18

(Iso-and thio-) cyanates

B19

Phenol and phenolic compounds

B20

Mercaptans

B21

Asbestos

B22

Halogen-silanes

B23

Hydrazine (s)

B24

Flourine

B25

Chlorine

B26

Bromine

B27

White and red phosphorus

B28

Ferro-silicate and alloys

B29

Manganese-silicate

B30

Halogen-containing compounds which produce acidic vapours on contact with humid air or water, e.g. silicon tetrachloride, aluminium chloride, titanium tetrachloride

CLASS C

Concentration limit; ?; 20,000 mg/kg

C1

Ammonia and ammonium compounds

C2

Inorganic peroxides

C3

Barium compounds except barium sulphate

C4

Fluorine compounds

C5

Phosphate compounds except phosphates of aluminium, calcium and iron

C6

Bromates,

(hypo-bromites)

C7

Chlorates, (hypo-chlorites)

C8

Aromatic compounds other than those listed under A12 to A18

C9

Organic silicone compounds

C10

Organic sulphur compounds

C11

Iodates

C12

Nitrates, nitrites

C13

Sulphides

C14

Zinc compounds

C15

Salts of per-acids

C16

Acid amides

C17

Acid anhydrides

CLASS D

Concentration limit: $\geq 50,000$ mg/kg

D1

Total Sulphur

D2

Inorganic acids

D3

Metal hydrogen sulphates

D4

Oxides and hydroxides except those of hydrogen, carbon, silicon, iron, aluminum, titanium, manganese, magnesium, calcium

D5

Total hydrocarbons other than those listed under A12 to A18

D6

Organic oxygen compounds

D7

Organic nitrogen compounds expressed as nitrogen

D8

Nitrides

D9

Hydrides

CLASS E

Regardless of concentration limit; Classified as hazardous wastes at all concentrations

E1

Flammable substances

E2

Substances which generate hazardous quantities of flammable gases on contact with water or damp air.

[SCHEDULE 3]

[Substituted by S.O. 593(E), dated 20.5.2003 (w.e.f. 23.5.2003).]

[See rules 3 (14)(c) & 12(a)]

Part A ? LISTS OF WASTES APPLICABLE FOR ONLY IMPORT AND EXPORT

[LIST A]

[List A given as Annex.VIII of the Basel Convention on Transboundary Movement of Hazardous Wastes and their disposal comprises of wastes characterised as hazardous under Article 1, paragraph 1(a) of the Convention. Inclusion of wastes on this list does not preclude the use of hazard characteristics given in Annex. III of Basel Convention to demonstrate that the wastes are not hazardous. Above list is modified to the extent the certain waste categories given in List "A" (Annex. VIII) of Basel Convention have been prohibited for import and export under the Environment (Protection) Act, 1986 and are listed separately under Schedule 8 of these Rules. Hazardous wastes in the above list are restricted and cannot be allowed to be imported into the country without DGFT licence.]

BaselNo.

Description of Wastes

[Annex I]

[Annex.I of Basel Convention denoting serial numdbders of the category of wastes to be controlled.]

[Annex III]

[Annex.III of Basel Convention denoting serial numbers of the hazard characteristics (Part B of this Schedule).]

OECD No.

CustomsCode

A1

Metal and Metal bearing wastes

A1010

Metal waste and waste consisting of alloys of the following metals, but excluding such wastes specified on list B(corresponding mirror entry under List B in brackets)

Base No.

Description of Wastes

Annex I

Annex III

OECD No.

Customs Code

- Antimony

Y27

6.1,

11, 12

AA070

ex 2620.90

- Cadmium

Y26

6.1,

11, 12

AA070

ex 2620.90

- Tellurium

Y28

6.1,

11, 12

AA070

ex 2620.90

- Lead

Y31

6.1,

11, 12

A1020

Waste having as constituents or contaminants, excluding metal wastes in massive form, any of the following:

- Cadmium, cadmium compounds. (see B1020)

Y26

6.1,

11, 12

AA070

ex 2620.90

- Antimony, antimony compounds (see B1020)

Y27

6.1,

11, 12

AA070

ex 2620.90

- Tellurium, tellurium compounds (see B1020)

Y28

6.1,

11, 12

AA070

ex 2620.90

- Lead, lead compounds (see B1020)

Y31

6.1,

11, 12

AA030

ex 2620.90

A1040

Wastes having as constituents any of the following:

- Metal carbonyls

Y19

6.1,

11, 12

A1050

Galvanic sludges

Y17

6.1,

12

AA120

A1060

Wastes Liquors from the pickling of metals.

Y17

6.1,

12

AA130

A1070

Leaching residues from zinc processing, dusts and sludges such as jarosite, hematite, goethite, etc.

Y23

12

AA140

A1080

Waste Zinc residues not included on list B containing lead and cadmium in concentrations sufficient to exhibit hazard characteristics indicated in part B of this schedule (see B1080 and B1100)

Y23

4.3,

12

AA020

ex 262019,

ex 2620.1

ex 2817

A1090

Ashes from the incineration of insulated copper wire

Y22

12

A1100

Dust and residues from gas cleaning systems of copper smelters.

Y18,

Y22

12

ex 2620.30

A1110

Spent electrolytic solutions from copper electro refining and electro winning operations

Y22

12

ex 2620.30

A1120

Wastes sludges, excluding anode slimes, from electrolytic purification systems in copper electro refining and electro winning operations.

Y18,

Y22

12

ex 2620.30

A1130

Spent etching solutions containing dissolved copper.

Y22

12

ex 3824.90

A1150

Precious metal ash from incineration of printed circuit boards not included on list 'B' (see B-1160)

AA161

ex7112.10

A1160

Waste Lead acid batteries whole or crushed.

Y31

6.1,

11, 12

AA170

A1170

Unsorted waste batteries excluding mixtures of only List B batteries. Waste batteries not specified on List B containing

schedule 2 constituents to an extent to render them hazardous (see B1090)

Y26,

Y29,

Y31

6.1,

11, 12

ex 8548.10,

ex 8548.90

A1180

Waste Electrical and electronic assemblies or scrap containing, compounds such as accumulators and other batteries included on list A, mercury-switches, glass from cathode-ray tubes and other activated glass and PCB-capacitors, or contaminated with Schedule 2

constituents (e.g. cadmium, mercury, lead, polychlorinated biphenyl) to an extent that they exhibit hazard characteristics indicated in part B of this Schedule (see B1110)

A2

Wastes containing principally inorganic constituents, which may contain metals and organic materials

A2010

Glass waste from cathode ray tubes and other activated glasses

Y31

6.1,

11, 12

AB040

ex 7001.00

A2030

Wastes catalysts but excluding such wastes specified on List B

Y31

A3

Wastes containing principally organic constituents which may contain metals and inorganic materials

A3010

Waste from the production or processing of petroleum coke and bitumen

Y11

AC010

ex 2713.90

A3020

Waste mineral oils unfit for their originally intended use

Y8

AC030

2710.00,

3823.90

A3050

Wastes from production formulation and use of resins, latex, plasticisers, glues/adhesives excluding such wastes specified in List B (B4020)

Y13

AC090

A3070

Waste phenol, phenol compounds including chlorophenol in the form of liquids or sludges

Y39

AC110

A3080

Waste ethers not including those specified in List B

AC130

A3120

Fluff: light fraction from shredding

AC190

A3130

Waste organic phosphorus compounds

Y37

AC200

A3140

Waste non-halogenated organic solvents

(but excluding such wastes specified on List B)

Y42

AC210

A3160

Waste halogenated or unhalogenated non-aqueous distillation residues arising from organic solvent recovery operations

Y18

AC230

A3170

Waste arising from the production of aliphatic halogenated hydrocarbons (such as chloromethanes, dichloromethane, vinyl chloride, vinylidene chloride, allyl chloride and epichlorhydrin)

Y45

AC240

A4

Wastes which may contain either inorganic or organic constituents

A4010

Wastes from the production and preparation and use of pharmaceutical products but excluding such wastes specified on List B

Y2

ADVISER010

A4040

Wastes from the manufacture formulation and use of wood preserving chemicals

Y5,

Y22,

Y24

ADVISER030

A4070

Waste from the production, formulation and use of inks, dyes, pigments, paints, lacquers, varnish excluding those specified in List B (B4010)

Y12

ADVISER070

A4080

Wastes of an explosive nature excluding such wastes specified on List B

Y15

A4090

Waste acidic or basic solutions excluding those specified in List B(B2120)

Y34,

Y35

AB110

ADVISER110

A4100

Wastes from industrial pollution control devices for cleaning of industrial off-gases excluding such wastes specified on List B

Y18

A4110

Wastes that contain, consist of or are contaminated with any of the following:

Any congener of polychlorinated dibenzofuran]

Any congener of polychlorinated dibenzodioxin]

A4120

Wastes that contain, consist of or are contaminated with peroxides.

A4130

Waste packages and containers containing any of the constituents mentioned in Schedule 2 to the extent of concentration limits specified therein.

A4140

Waste consisting of or containing off specification or out-dated chemicals containing any of the constituents mentioned in Schedule 2 to the extent of concentration limits specified therein.

Y3

A4150

Waste chemical substances arising from research and development or teaching activities which are not identified and/or are new and whose effects on human health and/or the environment are not known

Y14

A4160

Spent activated carbon not included on List B (B2060)

[LIST-B]

[List B given as Annexure IX of the Basel Convention on Transboundary Movement of Hazardous Wastes and their disposal comprises of wastes not covered by Article 1, paragraph 1(a) of the Convention, unless they contain material listed under Annexure I of the Convention to an extent causing them to exhibit Annexure III characteristics. Status of wastes in the above list with regard to their import in the country is indicated in respective footnotes. (for details, refer to ITC-HS Classification (EXIM Policy) brought out by the Directorate-General of Foreign Trade, Ministry of Commerce). Other residual and waste products of chemical and allied industries appearing in the above list but not specified in the EXIM Policy are restricted and cannot be allowed to be imported into the country without DGFT licence.]

B1010

Metal and metal-bearing wastes

Metal and metal-alloy wastes in metallic, non-dispersible form:

- Precious metals (gold, silver, platinum)

[Import permitted in the country without any licence or restriction.]

- Iron and steel scrap

[Restricted, import permitted in the country with DGFT licence only for the purpose of reprocessing or reuse.]

- Nickel scrap

[Restricted, import permitted in the country with DGFT licence only for the purpose of reprocessing or reuse.]

GA130

750300

- Aluminum scrap

[Restricted, import permitted in the country with DGFT licence only for the purpose of reprocessing or reuse.]

- Zinc scrap

[Restricted, import permitted in the country with DGFT licence only for the purpose of reprocessing or reuse.]

- Tin scrap

[Restricted, import permitted in the country with DGFT licence only for the purpose of reprocessing or reuse.]

- Tungsten scrap

[Import permitted in the country without any licence or restriction.]

- Molybdenum scrap

[Restricted, import permitted in the country with DGFT licence only for the purpose of reprocessing or reuse.]

GA190

ex 810291

- Tantalum scrap

[Restricted, import permitted in the country with DGFT licence only for the purpose of reprocessing or reuse.]

GA200

ex 810310

- Cobalt scrap

[Restricted, import permitted in the country with DGFT licence only for the purpose of reprocessing or reuse.]

GA220

ex 810510

- Bismuth scrap

[Restricted, import permitted in the country with DGFT licence only for the purpose of reprocessing or reuse.]

GA230

ex 810600

- Titanium scrap

[Restricted, import permitted in the country with DGFT licence only for the purpose of reprocessing or reuse.]

GA250

ex 810810

Base No.

Description of Wastes

Annex I

[Import permitted in the country without any licence or restriction]

Annex III

[Restricted, import permitted in the country with DGFT licence only for the purpose of reprocessing or reuse.]

OECD No.

Customs Code

- Zirconium scrap

GA260

ex 810910

- Manganese scrap

GA280

ex 811100

- Germanium scrap

GA310

ex 811230

- Vanadium scrap

GA320

ex 811240

- Hafnium scrap

GA330

ex 8112.91

- Indium scrap

GA340

ex 8112.91

- Niobium scrap

GA350

ex 8112.91

- Rhenium scrap

GA360

ex 8112.91

- Gallium scrap

GA370

ex 8112.91

- Magnesium scrap

[Import of the material covered by ISRI code is permitted without licence; for other material, DGFT licence is necessary.]

GA210

810420

- Copper scrap

[Import of copper scrap namely copper wire covered under ISRI code "Druid" and Jelly filled copper cables is permitted without a licence to units registered with the Ministry of Environment and Forests.]

GA120

740400

- Thorium scrap

- Rare earths scrap

B1020

Clean, uncontaminated metal scrap, including alloys, in bulk finished form (sheet, plate, beams, rods, etc.) of:

- Antimony scrap

[Restricted, import permitted in the country with DGFT licence only for the purpose of reprocessing or reuse.]

GA270

ex 8110.00

- Cadmium scrap

[Restricted, import permitted in the country with DGFT licence only for the purpose of reprocessing or reuse.]

GA240

ex 8107.10

- Lead scrap

- Tellurium scrap

[Import permitted in the country without any licence or restriction.]

B1030

Refractory metals containing residues

B1040

Scrap assemblies from electrical power generation not contaminated with lubricating oil, PCB or PCT to an extent to render them hazardous

B1050

Mixed non-ferrous metal, heavy fraction scrap, not containing any of the constituents mentioned in Schedule 2 to the extent of concentration limits specified therein

B1060

Waste tellurium in metallic elemental form including powder

Base No.

Description of Wastes

Annex I

Annex III

OECD No.

Customs Code

B1070

Waste of copper and copper alloys in dispersible form, unless they contain any of the constituents mentioned in Schedule 2 to the extent of concentration limits specified therein

ex 2620.30

B1080

Zinc ash and residues including zinc alloys residues in dispersible form unless they contain any of the constituents mentioned in Schedule 2 to the extent of concentration limits specified therein

ex 2620.10

ex 2620.19

ex 2817.00

B1090

Waste batteries conforming to specification, excluding those made with lead, cadmium or mercury.

ex 8548.10

ex 8548.90

B1100

Metal bearing wastes arising from melting, smelting and refining of metals:

GB

- Hard Zinc Spelter

- Zinc-containing drosses:

~Galvanizing slab zinc top dross

(>90% Zn)

~Galvanizing slab zinc bottom dross

(>92% Zn)

~Zinc die casting dross (>85% Zn)

~Hot dip galvanizers slab zinc dross

(batch) (>92% Zn)

~ Zinc skimmings

- Slags from copper processing for further processing or refining containing arsenic, lead or cadmium unless they contain any of the constituents mentioned in Schedule 2 to the extent of concentration limits specified therein

ex 262030

- Slags from precious metals processing for further refining.

GB40

ex 2620.90

- Wastes of refractory linings, including crucibles, originating from copper smelting

- Aluminum skimmings

(or skims) excluding salt slag

AA50

-Tantalum-bearing tin slags with less than 0.5% tin

GB050

ex 2620.90

Base No.

Description of Wastes

Annex I

Annex III

OECD No.

Customs Code

B1110

Electrical and electronic assemblies

GC

- Electronic assemblies consisting only of metals or alloys

GC010

- Waste Electrical and electronic assemblies scrap (including printed circuit boards, electronic components and wires) destined for direct reuse and not for recycling or final disposal

GC020

- Waste electrical and electronic assemblies scrap (including printed circuit boards) not containing components such as accumulators and other batteries included on list A, mercury-switches, glass from cathode-ray tubes and other activated glass and PCB-capacitors, or not contaminated with constituents such as cadmium, mercury, lead, polychlorinated biphenyl) or from which these have been removed, to an extent that they do not possess any of the constituents mentioned in Schedule 2 to the extent of concentration limits specified therein

- Electrical and electronic assemblies (including printed circuit boards, electronic components and wires) destined for direct reuse and not for recycling or final disposal.

B1120

Spent catalysts excluding liquids used as catalysts, containing any of:

Transition metals, excluding waste catalysts (spent catalysts, liquid used catalysts or other catalysts) on list A:

Scandium
Titanium
Vanadium
Chromium
Manganese
Iron
Cobalt
Nickel
Copper
Zinc
Yttrium
Zirconium
Niobium
Molybdenum
Hafnium
Tantalum
Tungsten
Rhenium
Lanthanides
(rare earth metals):
Lanthanum
Cerium
Praseodymium
Neodymium
Samarium
Europium
Gadolinium
Terbium
Dysprosium
Holmium
Erbium
Thulium
Ytterbium
Lutetium

B1130

Cleaned spent precious metal bearing catalysts

ex 381510

ex 711510

B1140

Precious metal bearing residues in solid form which contain traces of inorganic cyanides

ex 381510

ex 711510

B1150

Precious metals and alloy wastes

(gold, silver, the platinum group) in a dispersible form

ex 381510

ex 711510

B1160

Precious-metal ash from the incineration of printed circuit boards (note the related entry on list A A1150)

B1170

Precious metal ash from the incineration of photographic film

ex 284310

B1180

Waste photographic film containing silver halides and metallic silver

B1190

Waste photographic paper containing silver halides and metallic silver

B1200

Granulated slag arising from the manufacture of iron and steel

[Import permitted in the country without any licence or restriction.]

GC080

ex 261900

B1210

Slag arising from the manufacture of iron and steel including slag as a source of Titanium dioxide and Vanadium

[Slag and dross other than granulated, scalings and other wastes are restricted; import permitted with DGFT licence only for the purpose of reprocessing or reuse.]

ex 261900

B1220

Slag from zinc production, chemically stabilized, having a high iron content (above 20%) and processed according to industrial specifications mainly for construction

ex 262030

B1230

Mill scaling arising from manufacture of iron and steel

ex 261900

B1240

Copper Oxide mill-scale

[Copper oxide mill scale are allowed for import in the country without DGFT licence to units (actual users) registered with MoEF upto an annual quantity limit indicated in the Registration Letter.]

B2

Wastes containing principally inorganic constituents, which may contain metals and organic materials

B2010

Wastes from mining operations in non-dispersible form:

- Natural graphite waste

GD010

250400

- Slate wastes

[Restricted, import permitted in the country with DGFT licence only for the purpose of reprocessing or reuse.]

- Mica wastes

- Leucite, nepheline and nepheline syenite waste

GD040

252930

- Feldspar waste (lumps & powder)

GD050

252910

- Fluorspar waste

GD060

252921

- Silica wastes in solid form excluding those used in foundry operations

252922

B2020

Glass wastes in non-dispersible form:

- Cullet and other wastes and scrap of glass except for glass from cathode ray tubes and other activated glasses

Base No.

Description of Wastes

Annex I

Annex III

OECD No.

Customs Code

B2030

Ceramic wastes in non-dispersible form:

GF

Cermetwastes and scrap(metal ceramic composites)

[Restricted, import permitted in the country with DGFT licence only for the purpose of reprocessing or reuse.]

GF020

ex 8113.00

- Ceramic based fibres

B2040

Other wastes containing principally inorganic constituents:

GC

- Partially refined calcium sulphate produced from flue gas desulphurisation

(FGD)

GC010

ex 262100

- Waste gypsum wallboard or plasterboard arising from the demolition of buildings

[Import permitted the country without any licence or restriction.]

-Sulphurin solid form

- Limestone from production of calcium cyanamide (pH<9)

[Import of limestone and other calcareous stones of a kind used for manufacture of lime or cement permitted in the country without any licence or restriction.]

- Sodium, potassium, calcium chlorides

- Carborundum

(silicon carbide)

- Broken concrete

- Lithium tantalum & Lillium-niobium containing glass scraps

B2050

Coal-fired power plant fly-ash unless it contains any of the constituents mentioned in Schedule 2 to the extent of concentration limits specified therein

B2060

Spent activated carbon resulting from the treatment of potable water and processes of the food industry and vitamin production (note the related entry on list AA4160)

B2070

Calcium fluoride sludge

AB050

ex 281800

B2080

Waste gypsum arising from chemical industry processes unless it contains any of the constituents mentioned in Schedule 2 to the extent of concentration limits specified therein

B2090

Waste anode butts from steel or aluminium production made of petroleum coke or bitumen and cleaned to normal industry specifications (excluding anode butts from chlor alkali electrolyses and from metallurgical industry)

B2100

Waste hydrates of aluminum and waste alumina and residues from alumina production, arising from gas cleaning,

flocculation or filtration process

ex 281800

B2110

Bauxite residue ("red mud")

(pH moderated to less than 11.5) (Note related entry on List A A4090)

ex 260600

B2120

Waste acidic or basic solutions with a pH greater than 2 and less than 11.5, which are not corrosive or otherwise hazardous (note the related entry on list A A4090)

Base No.

Description of Wastes

Annex I**

Annex III#

OECD No.

Customs Code

B3

Wastes containing principally organic constituents, which may contain metals and inorganic materials

B3010

Solid plastic waste

[Restricted, import permitted in the country with DGFT licence only for reprocessing or reuse [except polyethylene terephthalate (PET) bottle waste/scrap].]

:

GH

The following plastic or mixed plastic materials, provided they are not mixed with other wastes and are prepared to a specification:

- Scrap plastic of non-halogenated polymers and copolymers, including but not limited to the following:

Ethylene

GH011

391590

Styrene

GH012

391520

polypropylene

GH014

391590

polyethylene tere-phthalate

GH014

391590

acrylonitrile

GH014

ex 391590

butadiene

GH014

ex 391590

polyacetals

polyamides

GH014

ex 391590

polybutylenetere-phthalate

GH014

ex 391590

polycarbonates

GH014

ex 391590

polyethers

polyphenylenesulphides

GH014

ex 391590

acrylic polymers

GH014

ex 391590

alkanesC10-C13 (plasticiser)

polyurethane (not containing CFC's)

GH014

ex 391590

polysiloxanes

GH014

ex 391520

polymethylmethacrylate

GH014

ex 391520

polyvinyl alcohol

GH014

ex 391520

polyvinyl butyral

GH014

ex 391520

Polyvinyl acetate

GH014

ex 391520

- Cured waste resins or condensation products including the following:

urea formaldehyde resins

GH015

ex 391520

phenol formaldehyde resins

GH015

ex 391520

melamine formaldehyde resins

GH015

ex 391520

epoxy resins

GH015

ex 391520

alkyd resins

GH015

ex 391520

polyamides

GH015

ex 391520

- The following fluorinated polymer wastes (excluding post-consumer wastes):

Perfluoroethylene/

propylene

Perfluoroalkoxyalkane

Metafluoroalkoxyalkane

polyvinylfluoride

polyvinylidenefluoride

B3020

Paper, paperboard and paper product wastes

[Import permitted in the country without any licence or restriction.]

The following materials, provided they are not mixed with hazardous wastes:

Waste and scrap of paper or paperboard of:

Base No.

Description of Wastes

Annex I

Annex III

OECD No.

Customs Code

- unbleached paper or paperboard or of corrugated paper or paperboard
- other paper or paperboard, made mainly of bleached chemical pulp, not coloured in the mass
- paper or paperboard made mainly of mechanical pulp (for example, newspapers, journals and similar printed matter)
- other, including but not limited to (1) laminated paperboard (2) unsorted scrap.

B3030

Textile wastes

The following materials, provided they are not mixed with other wastes and are prepared to a specification:

Silk waste (including cocoons unsuitable for reeling, yarn waste and garnetted stock)

[Restricted, import permitted in the country with DGFT licence only for reprocessing or reuse. Import permitted without DGFT licence, if material is in completely mutilated form conforming to the requirement specified by Customs authorities.]

- not carded or combed
- other

Waste of wool or of fine or coarse animal hair, including yarn waste but excluding garnetted stock

- noils of wool or of fine animal hair
- other waste wool or of fine animal hair
- waste of coarse animal hair

Cotton waste (including yarn waste and garnetted stock)

- yarn waste (including thread waste)
- garnetted stock
- other

Flax tow and waste

Tow and waste (including yarn waste and garnetted stock) of true hemp (*Cannabis sativa* L.)

[Restricted, import permitted in the country with DGFT licence only for reprocessing or reuse. Import permitted without DGFT licence, if material is in completely mutilated form conforming to the requirement specified by Customs authorities.]

Tow and waste (including yarn waste and garnetted stock) of jute and other textile bast fibres (excluding flax, true hemp and ramie)

Tow and waste (including yarn waste and garnetted stock) of sisal and other textile fibres of the genus *Agave*

Tow, noils and waste (including yarn waste and garnetted stock) of coconut

Tow, noils and waste (including yarn waste and garnetted stock)

of abaca (Manila hemp or *Musa* textiles Nee)

Base No.

Description of Wastes

Annex I

Annex III

OECD No.

Customs Code

Tow, noils and waste (including yarn waste and garnetted stock of ramie and other vegetable textile fibres, not elsewhere specified or included

Waste (including noils, yarn waste and garnetted stock) of man-made fibres

- of synthetic fibres

- of artificial fibres

Worn clothing and other worn textile articles

Used rags, scrap twine, cordage, rope and cables and worn out articles of twine, cordage, rope or cables of textile materials

- sorted

- other

B3040

Rubber wastes

The following materials, provided they are not mixed with other wastes:

- Waste and scrap of hard rubber

(e.g. ebonite)

- Other rubber wastes (excluding such wastes specified elsewhere)

B3050

Untreated cork and wood waste

Wood waste and scrap, whether or not agglomerated in logs, briquettes, pellets or similar forms

Corkwaste: crushed, granulated or ground cork

B3060

Wastes arising from agro-food industries provided it is not infectious:

Wine lees

Dried and sterilized vegetable waste, residues and byproducts, whether or not in the form of pellets, of a kind used in animal feeding, not elsewhere specified or included

GM100

050690

Degras: residues resulting from the treatment of fatty substances or animal or vegetable waxes

GM110

ex 051191

Waste of bones or horn cores unworked, defatted, simply prepared (but not cut to shape), treated with acid or degelatinised

Fish waste

[Prohibited under EXIM Policy (ITC-HS Classification)]

Cocoa shells, husks, skins and other cocoa waste

[Import permitted in the country without any licence or restriction.]

Other wastes arising from agro-food industry excluding by-products which meet national and international requirements and standards for human or animal consumption

BaseNo.

Description of Wastes

Annex I

Annex III

OECD No.

Customs Code

B3070

The following wastes:

- Waste of human hair

[Import permitted in the country without any licence or restriction]

- Waste straw

- Deactivated fungus mycelium from penicillin production to be used as animal feed

B3080

Waste parings and scrap of rubber

[Restricted, import permitted in the country with DGFT licence only for reprocessing or reuse.]

B3090

Paring and other wastes of leather or of composition leather not suitable for the manufacture of leather articles, excluding leather sludges, not containing hexavalent chromium compounds and biocides (note the related entry on list A A3100)

B3100

Leather dust, ash, sludges or flours not containing hexavalent chromium compounds or biocides

B3110

Fellmongerywastes not containing hexavalent chromium compounds or biocides or infectious substances

B3120

Wastes consisting of food dyes

B3130

Waste polymer ethers and waste non-hazardous monomer ethers incapable of forming peroxides

B3140

Waste pneumatic tyres, excluding those which do not lead to resource recovery, recycling, reclamation or direct reuse

B4

Wastes which may contain either inorganic or organic constituents

B4010

Wastes consisting mainly of water-based/latex paints, inks and hardened varnishes not containing organic solvents, heavy metals or biocides to an extent to render them hazardous

(note the related entry on list A A4070)

B4020

Wastes from production, formulation and use of resins, latex, plasticizers, glues/adhesives, not listed on list A, free of solvents and other contaminants to an extent that they do not exhibit Annex III characteristics, e.g. water-based, or glues based on casein starch, dextrin, cellulose ethers, polyvinyl alcohols (note the related entry on list A A3050)

B4030

Used single-use cameras, with batteries not included on list A

Part B ? LIST OF HAZARDOUS CHARACTERISTICS

Code

Characteristic

1

Explosive

An explosive substance or waste is a solid or liquid substance or waste (or mixture of substances or wastes) which is in itself capable by chemical reaction of producing gas at such a temperature and pressure and at such speed as to cause damage to the surroundings (UN Class 1; HI).

3

Flammable Liquids

The word "flammable" has the same meaning as "inflammable". Flammable liquids are liquids, or mixtures of liquids, or liquids containing solids in solution or suspension (for example, paints, varnishes, lacquers, etc., but not including substances or wastes otherwise classified on account of their dangerous characteristics) which give off a flammable vapour at temperatures of not more than 60.5°C, closed-cup test, or not more than 65.5°C, open-cup test. (Since the results of open-cup tests and of closed-cup tests are not strictly comparable and even individual results by the same test are often variable, regulations varying from the above figures to make allowance for such differences would be within the spirit of this definition).

4.1

Flammable Solids

Solids, or waste solids, other than those classed as explosives, which under conditions encountered in transport are readily combustible, or may cause or contribute to fire through friction.

4.2

Substances or wastes liable to spontaneous combustion

Substances or wastes which are liable to spontaneous heating under normal conditions encountered in transport, or to heating up on contact with air, and being then liable to catch fire.

4.3

Substances or wastes, which in contact with water emit flammable gases

Substances or wastes which, by interaction with water, are liable to become spontaneously flammable or to give off flammable gases in dangerous quantities.

5.1

Oxidizing

Substances or wastes which, while in themselves not necessarily combustible, may, generally by yielding oxygen cause, or contribute to, the combustion of other materials.

5.2

Organic Peroxides

Organic substances or wastes which contain the bivalent-O-O-structure are thermally unstable substances which may undergo exothermic self-accelerating decomposition.

6.1

Poisons (Acute)

Substances or wastes liable either to cause death or serious injury or to harm health if swallowed or inhaled or by skin contact.

6.2

Infectious substances

Substances or wastes containing viable micro organisms or their toxins which are known or suspected to cause disease in animals or humans.

8

Corrosives

Substances or wastes which, by chemical action, will cause severe damage when in contact with living tissue, or, in the case of leakage, will materially damage, or even destroy, other goods or the means of transport; they may also cause other hazards.

10

Liberation of toxic gases in contact with air or water

Substances or wastes which, by interaction with air or water, are liable to give off toxic gases in dangerous quantities.

11

Toxic (Delayed or chronic)

Substances or wastes which, if they are inhaled or ingested or if they penetrate the skin, may involve delayed or chronic effects, including carcinogenicity).

12

Ecotoxic

Substances or wastes which if released present or may present immediate or delayed adverse impacts to the environment by means of bioaccumulation and/or toxic effects upon biotic systems.

13

Capable by any means after disposal, of yielding another material, e.g., leachate, which possesses any of the characteristics listed above.

Schedule 4

[See rule 3 (20), 19 (1) and 20(1)]

LIST OF NON-FERROUS METAL WASTES APPLICABLE FOR REGISTRATION OF RECYCLERS

Waste Category

Waste Type

1

2

1

Brass Scrap

2

Brass Dross

3

Copper Scrap

4

Copper Dross

5

Copper Oxide mill scale

6

Copper reverts, cake and residue

7

Waste Copper and copper alloys

8

Slags from copper processing for further processing or refining

9

Insulated Copper Wire Scrap/copper with PVC sheathing including ISRI-code material namely "Druid"

10

Jelly filled copper cables

11

Spent cleared metal catalyst containing copper

12

Nickel Scrap

13

Spent catalyst containing nickel, cadmium, zinc, copper and arsenic

14

Zinc Scrap

15

Zinc Dross-Hot dip Galvanizers SLAB

16

Zinc Dross-Bottom Dross

17

Zinc ash/skimmings arising from galvanizing and die casting operations

18

Zinc ash/skimming/other zinc bearing wastes arising from smelting and refining

19

Zinc ash and residues including zinc alloy residues in dispersible form

20

Spent cleared metal catalyst containing zinc

21

Mixed non-ferrous metal scrap

22

Lead acid battery plates and other lead scrap/ashes/residues not covered under Batteries (Management and Handling) Rules, 2001.]

[SCHEDULE 5]

[Notification G.S.R. 620(E), dated 6-9-1995 is hereby rescinded.]

[See rule 3 (34)]

SPECIFICATION FOR USED OIL SUITABLE FOR RE-REFINING

Sl. No.

Parameter

Maximum Permissible Limit

- 1
- 2
- 3
- 1.
- 2.
- 3.
- 4.
- 5.
- 6.
- 7.
- 8.
- 9.
- 10.
- 11.
- 12.
- 13.

Colour

8 hazen units

Water

15%

Density

0.85 to 0.95

Kinemetic Viscosity cst at 100oC

1.0 to 32

Dilutents

15% vol.

Neutralisation No.

3.5 mg KOH/g

Saponification value

18 mg KOH/g

Total halogens

4000 ppm

Polychlorinated biphenyls (PCBs)

Below detection limit

Lead

100 ppm

Arsenic

5 ppm

Cadmium+Chromium+Nickle

500 ppm

Polyaromatic hydrocarbons (PAH)

6%

Schedule 6

[See rule 3(35) and 20(2)]

SPECIFICATIONS FOR WASTE OIL SUITABLE FOR RECYCLING

Sl. No.

Parameter

Limit

- 1
- 2
- 3

1.
Sediment
5% (maximum)
2.
Heavy Metals (cadmium+chromium+nickel+lead+arsenic)
605 ppm maximum
3.
Polyaromatic hydrocarbons (PAH)
6% maximum
4.
Total halogens
4000 ppm maximum
5.
Polychlorinated biphenyls (PCBs)
Below Detection Limit
Schedule 7
[See rule 4-B and 12 (4)]

LIST OF AUTHORITIES AND CORRESPONDING DUTIES

S. No.	Authority	Corresponding Duties
--------	-----------	----------------------

- | | | |
|-------|--|--|
| 1 | | |
| 2 | | |
| 3 | | |
| 1. | Ministry of Environment and Forests under the Environment (Protection) Act, 1986 | |
| (i) | Identification of hazardous wastes [Rule 3(14)] | |
| (ii) | Permission to exporters [rule 14] | |
| (iii) | Permission to importers [rule 13] | |
| (iv) | Permission for transit of hazardous wastes through India [rule 12(2)] | |

- | | | |
|-------|--|--|
| 2. | Central Pollution Control Board constituted under the Water (Prevention and Control of Pollution) Act, 1974 | |
| (i) | Co-ordination of activities of State Pollution Control Boards/Committees | |
| (ii) | Conduct training courses for authorities dealing with management of hazardous wastes | |
| (iii) | Recommend standards and specifications for treatment and disposal of wastes and leachates Recommend procedures for characterization of hazardous wastes. | |
| (iv) | Sector specific documentation to identify waste streams(s) for inclusion in Hazardous Wastes Rules | |
| (v) | Prepare guidelines to prevent/reduce/minimize the generation and handling of hazardous wastes | |
| (vi) | Registration and renewal of registration of Recyclers/Re-refiners of non-ferrous metal wastes and used oil/waste oil [Rule 19] | |
| (vii) | Any other function under Rules delegated by the Ministry of Environment and Forests | |

- | | | |
|-------|---|--|
| 3. | State Government/Union Territory Government/ Administration | |
| (i) | Identification of site(s) for common treatment, storage and disposal facility (TSDF) [Rule 8(2)] | |
| (ii) | Assess EIA reports and convey the decision of approval of site or otherwise [rule 8(6)] | |
| (iii) | Acquire the site or inform operator of facility or occupier or association of occupiers to acquire the site [Rule 8(7)] | |
| (iv) | Notification of sites [Rule 8(7)] | |

(v) Publish periodically an inventory of all disposal sites in the State/Union territory [Rule 8(7)]

4.

State Pollution Control Boards or Pollution Control Committees constituted under the Water (Prevention and Control of Pollution) Act, 1974

(i) Inventorisation of hazardous wastes [Rule 9(3)]

(ii) Grant and renewal of authorisation [Rule 5]

(iii) Monitoring of compliance of various provisions and conditions of authorisation including exports and imports

(iv) Issue of public notice and conduct public hearing [Rule 8(4)]

(v) Examining the applications for imports submitted by the importers and forwarding the same to Ministry of Environment and Forests [Rule 13 (1) & (2)]

(vi) Implementation of programmes to prevent/reduce/minimize the generation of hazardous wastes

(vii) Action against violations of Hazardous Wastes (Management and Handling) Rules, 1989

5.

Directorate General of Foreign Trade constituted under the Foreign Trade (Development and Regulation) Act, 1992.

(i) Grant of licence for import of hazardous wastes [Rule 13

(5)]

(ii) Refusal of license for hazardous wastes prohibited for imports or export [Rule 12(7)]

6.

Port Authority under Indian Ports Act, 1908 (

15 of 1908

) and Customs Authority under the Customs Act, 1962 (52

of 1962).

(i) Verify the documents [Rule 13 (6)]

(ii) Inform the Ministry of Environment and Forests of any illegal traffic [Rule 15]

(iii) Analyse wastes permitted for imports and exports

(iv) Train officials on the provisions of the Hazardous Wastes Rules and in the analysis of hazardous wastes

(v) Take action against export/import violations under the Indian Ports Act, 1908/Customs Act, 1962

Schedule 8

[See rule 12 (1)]

HAZARDOUS WASTES PROHIBITED FOR IMPORT AND EXPORT

S. No.

Basel* No.*

OECD** No.

Description of material

1

2

3

4

1.

A 1010

AA 100

Mercury

2.

A 1030

AA 100

Waste having Mercury: Mercury Compounds as constituents or contaminants

3.

A 1010

AA 070

Beryllium

4.

A 1020

AA 070

Waste having Beryllium: Beryllium Compounds as constituents or contaminants

5.

A 1010

AA 090

Arsenic

6.

A 1030

AA 090

Waste having Arsenic: Arsenic compounds as constituents or contaminants

7.

A 1010

AA 070

Selenium

8.

A 1020

AA 070

Waste having Selenium; Selenium Compounds as constituents or contaminants

9.

A 1010

AA 080

Thallium

10.

A 1030

AA 080

Waste having Thallium; Thallium Compounds as constituents or contaminants

11.

A 1040

AA 070

Hexavalent Chromium Compounds

12.

A 1140

Wastes Cupric Chloride and Copper Cyanide Catalysts

13.

A 2020

Waste inorganic fluorine compounds in the form of liquids or sludge but excluding calcium fluoride sludge

14.

A 2040

Waste gypsum arising from chemical industry processes if it contains any of the constituents mentioned in Schedule 2 to the extent of concentration limits specified therein

15.

A 2050

RB 010

Waste Asbestos (Dust and Fibres)

16.

A 2060

Coal fired power plant fly ash if it contains any of the constituents mentioned in Schedule 2 to the extent of concentration limits specified therein

17.

A 3030

Wastes that consist of or are contaminated with leaded anti-knock compound sludge or leaded petrol (gasoline) sludges.

18.

A 3040

Waste thermal (heat transfer) fluids.

19.

A 3060

Waste Nitrocellulose.

20.

A 3090

Waste leather dust, ash, sludges and flours when containing hexavalent chromium compounds or biocides.

21.

A 3100

Waste paring and other waste of leather or of composition leather not suitable for the manufacture of leather articles containing hexavalent chromium compounds or biocides.

22.

A 3110

Fellmongerywastes containing hexavalent chromium compounds or biocides or infectious substances.

23.

A 3150

Waste halogenated organic solvents.

24.

A 3180

AC 120

Waste, Substances and articles containing, consisting of or contaminated with polychlorinated biphenyls (PCB) and/or polychlorinated terphenyls. (PCT) and/or polychlorinated naphthalene's (PCN) and/or polybrominated biphenyl's (PBB) or any other polybrominated analogues of these compounds

25.

A 3190

Waste tarry residues (excluding asphalt cements) arising from refining, distillation and pyrolytic treatment of organic materials)

26.

A 4020

Clinical and related wastes; that is wastes arising from medical, nursing, dental, veterinary, or similar practices and wastes generated in hospital or other facilities during the investigation or treatment of patients, or research projects.

27.

A 4030

AD 020

Waste from the production, formulation and use of biocides and phyto-pharmaceuticals, including waste pesticides and biocides which are off-specification, out-dated, and/or unfit for their originally intended use.

28.

A 4050

AD 040

Waste that contain, consist of, or are contaminated with any of the following;

Inorganic cyanides, excepting precious metal bearing residues in solid form containing traces of inorganic cyanides.]

Organic cyanides.]

29.

A 4060

Waste oil/water, hydrocarbons/water mixtures, emulsions

[FORM 1]

[Substituted by S.O. 593(E), dated 20-5-2003 (w.e.f. 23-5-2003).]

[See rules 3(2), 5(2)(3) and (6) (ii)]

APPLICATION FOR OBTAINING AUTHORISATION FOR
COLLECTION/RECEPTION/TREATMENT/TRANSPORT/STORAGE/DISPOSAL OF HAZARDOUS WASTES*
From

.....

.....

.....

To

The Member-Secretary,

..... Pollution Control Board,

.....

.....

Sir,

I/We hereby apply for authorisation/renewal of authorisation under sub-rule (2) and (3) and clause (ii) of sub-rule (6) of rule 5 of the Hazardous Wastes (Management and Handling) Rules, 1989, for collection/reception/treatment/transport/storage/disposal of hazardous wastes.

FOR OFFICE USE ONLY

1. Code No. :

2. Whether the unit is situated in a critically polluted area as identified by Ministry of Environment and Forests;

TO BE FILLIED IN BY APPLICANT

Part A ? GENERAL

3.

(a) Name and address of the unit and location of activity:

(b)

Authorisation required for (Please tick mark appropriate activity/activities) :

(i)

collection

(ii)

reception

(iii)

treatment

(iv)

transport

(v)

storage

(vi)

disposal

(c)

In case of renewal of authorisation previous authorisation number and date:

4. (a) Whether the unit is generating hazardous waste as defined in the Hazardous wastes (Management and Handling) Rules, 1989 and amendments made thereunder;

(b)

If so the type and quantity of wastes:

5. (a) Total capital invested on the project :

(b)

Year of commencement of production :

(c)

Whether the industry works general/2 shifts/round the clock :

6. (a) List and quantum of products and by-products :

(b)

List and quantum of raw material used :

7. Furnish a flow diagram of manufacturing process showing input and output in terms of products and waste generated including for captive power generation and demineralised water.

*Delete whichever is not applicable.

Part B ? SEWAGE AND TRADE EFFLUENT

8. Quantity and source of water for :

(a)

Cooling m³/d :

(b)

Process m³/d :

(c)

Domestic use m³/d :

(d)

Others m³/d :

9. Sewage and trade effluent discharge :

(a)

Quantum of discharge m³/d :

(b)

Is there any effluent treatment plant :

(c)

If yes, a brief description of unit operations with capacity :

(d)

Characteristics of final effluent:

pH

Suspended solids

Dissolved solids

Chemical Oxygen Demand (COD)

Bio-Chemical Oxygen Demand *[(BOD₅/20°C/BOD₃/27°C]

Oil and grease

(Additional parameters as specified by the concerned Pollution Control Board)

(e)

Mode of disposal and final discharge point :

(enclose map showing discharge point) :

(f)

Parameters and Frequency of self monitoring :

[*] Read BOD (3 days at 27°C)

Part C ? STACK (CHIMNEY) AND VENT EMISSIONS

10. (a) Number of stacks and vents with height and dia (m)

(b)

Quality and quantity of stack emission from each of the above stacks-particulate matter and Sulphar Dioxide (SO₂)

(Additional parameters as specified by the concerned Pollution Control Board)

(c)

A brief account of the air pollution control unit to deal with the emission:

(d)

Parameters and Frequency of self monitoring:

Part D ? HAZARDOUS WASTES

11. Hazardous Wastes :

(a)

Type of hazardous wastes generated as defined under the Hazardous Wastes (Management and Handling) Rules, 1989:

(b)

Quantum of hazardous waste generated:

(c)

Mode of storage within the plant, method of disposal and capacity:

12. (a) Hazardous Chemicals as defined under the Manufacture, Storage and Import of Hazardous Chemicals Rules, 1989:

(b)

Whether any isolated storage is involved (if yes, attach details): Yes / No

Part E ? TREATMENT, STORAGE AND DISPOSAL FACILITY

13. Detailed proposal of the facility (to be attached) to include :

(i)

Location of site (provide map).

(ii)

Name of waste processing technology.

(iii)

Details of processing technology.

(iv)

Type and Quantity of waste to be processed per day.

(v)

Site clearance (from local authority, if any).

(vi)

Utilisation programme for waste processed (Product Utilisation).

(vii)

Method of disposal (details in brief be given).

(viii)

Quantity of waste to be disposed per day.

(ix)

Nature and composition of waste.

(x)

Methodology and operational details of landfilling/incineration.

(xi)

Measures to be taken for prevention and control of environmental pollution including treatment of leachates.

(xii)

Investment on Project and expected returns.

(xiii)

Measures to be taken for safety of workers working in the plant

Place.....

Date.....

Signature.....

Designation.....

FORM 2

[See rules 3(c) and 5(5)]

[FORM FOR GRANT OF AUTHORISATION FOR OCCUPIER OR OPERATOR HANDLING HAZARDOUS WASTES]

[Substituted by S.O. 24(E), dated 6.1.2000 (w.e.f. 6.1.2000).]

1. Number of authorisation and date of issue.....

2.of.....is hereby granted an authorisation to operate a facility for collection, reception, treatment, storage, transport and disposal of hazardous waste on the premises situated at.....

3. The authorisation granted to operate a facility for collection, reception, treatment, storage, transport and disposal of hazardous wastes.

4. The authorisation shall be in force for a period of.....years from the date of issue.

5. The authorisation is subject to the conditions stated below and to such conditions as may be specified in the rules for the time being in force under the Environment (Protection) Act, 1986.

Date.....

Signature.....

Designation.....

TERMS AND CONDITIONS OF AUTHORISATION

1. The authorisation shall comply with the provisions of the Environment (Protection) Act, 1986, and the Rules made thereunder.

2. The authorisation or its renewal shall be produced for inspection at the request of an officer authorised by the [State Pollution Control Board or Committee]

[Substituted by S.O. 625(E), dated 3.9.1996 (w.e.f. 3.9.1996).]

.

3. The person authorised shall not rent, lend, sell, transfer or otherwise transport the hazardous wastes without obtaining prior permission of the [State Pollution Control Board or Committee]

[Substituted by S.O. 625(E), dated 3.9.1996 (w.e.f. 3.9.1996).]

.

4. Any unauthorised change in personnel, equipment or working conditions as mentioned in the application by the person authorised shall constitute a breach of his authorisation.

5. It is the duty of the authorised person to take prior permission of the [State Pollution Control Board or Committee]

[Substituted by S.O. 625(E), dated 3.9.1996 (w.e.f. 3.9.1996).]

to close down the facility.

6. An Application for the renewal of an authorisation shall be made as laid down in rule 5(6)(ii).

FORM 3

[See rule 9(1)]

FORMAT FOR MAINTAINING RECORDS OF HAZARDOUS WASTES AT THE FACILITY

1. Name and address of the occupier or operator of a facility

2. Date of issuance of authorisation and its reference number.

3. Description of hazardous waste:

Physical form with description

Chemical form

Total volume and weight (in kgs.)

4. Description of storage and treatment of hazardous wastes :

Date

Method of storage of hazardous wastes:

Date

Method of treatment of hazardous wastes

5. Details of transportation of hazardous waste :

Name and address of the consignee of the package

Mode of packing of the waste for transportation

Mode of transportation to site of disposal

Date of transportation

6. Details of disposal of hazardous waste :

Date of disposal

Concentration of hazardous material in the final waste form

Site of disposal (identify the location on the relevant layout drawing for reference)

Method of disposal

Persons involved in disposal

7. Data on environmental surveillance:

Date of measurement

Analysis of ground water

Analysis of soil water

Analysis of air sampling

Analysis of any other samples (give details)

Location of sampling

Depth of sampling

Data

Location of sampling

Depth of sampling

Data

Location of sampling

Data

8. [Details of the hazardous wastes reused and recycled]

[Inserted by S.O. 24(E), dated 6.1.2000 (w.e.f. 6.1.2000).]

-

Date

Total quantity of hazardous waste generated

Details of hazardous waste minimization activity

Material received

Final quantity of waste generated

Net reduction in waste generation quantity and percentage

Place.....

Date.....

Signature.....

Designation.....

[FORM 4]

[Substituted by S.O. 593(E), dated 20.5.2003 (w.e.f. 23.5.2003).]

[See rule 9(2)]

FORM FOR FILING RETURNS REGARDING HANDLING OF HAZARDOUS WASTES

(To be submitted to the State Pollution Control Board/Committee by 31st January of every year)

1. Name and address of the Occupier/Operator of Facility:

2. Categories of wastes generated and quantity (in metric tonnes):

3. Details of waste treatment operations:

4. Details of waste disposal operations:

S.No.

Description of Hazardous Waste

Date of issuance of authorization for the disposal of hazardous waste and its reference number

Physical form and contents

Chemical form

Total Volume of the hazardous waste disposed with no. of packages

Mode of transportation to the site of disposal

Site of disposal (attach a sketch showing the location(s) of disposal)

Brief description of the method of disposal

Date of disposal

Remarks

(if any)

1

2

3

4

5

6

7

8

9

10

5. Details of environmental surveillance :

Date of other measurement details

Analysis of ground water samples

Analysis of soil samples

Analysis of air sampling

Analysis of any other samples (give details)

Location of sampling

Depth of sampling

Data

Location of sampling

Depth of sampling

Data

Location of sampling

Data

Place.....

Signature.....

Date.....

Designation.....

FORM 5

(See rule 10)

1.

The date and time of the accident

:

2.

Sequence of events leading to accident

:

3.

The hazardous waste involved in accident

:

4.

The data of assessing the effects or the accident on health of the environment

:

5.

The emergency measures taken

:

6.

The steps taken to alleviate the effects of accidents

:

7.

The steps taken to prevent of recurrence of such an accidents

:

[Place.....

Date.....

Signature.....

Designation.....]

[FORM 6]

[Substituted by S.O. 24(E), dated 6-1-2000 (w.e.f. 6-1-2000).]

[See rule 13(1)]

APPLICATION FOR IMPORTING HAZARDOUS/RECYCLABLE WASTES AS RAW MATERIALS

From

.....

.....
.....

TO BE MAILED BY IMPORTER

To

The Member-Secretary

.....Pollution Control Board,

.....
.....

Sir,

I/We apply for "No Objection" of authorisation under sub-rule (1) or rule 13 of the Hazardous Wastes (Management & Handling) Rules, 1989, amended in 1999 for importing/exporting hazardous/recyclable wastes to use as raw materials.

FOR OFFICE USE ONLY

1.

Code No.:

2.

Whether the unit is situated in a critically polluted area as identified by the Ministry of Environment and Forests:

TO BE FILLED IN BY APPLICANT

PART 1:

(To be filled by exporter or a person authorised by the exporter)

1.

Name and Address of the Exporter

2.

Details of material (hazardous wastes in the form of raw material) to be exported.

Sl. No.

Particulars

Six digit Code No.

Purity expected

Quantity

Whether any special handling requirement?

3. The material permitted shall be fully insured for transit as well as for any accidental occurrence and its cleanup operation.

4. The exported material shall be taken back, if it creates a genuine environmental hazard or shall take all such measures to treat and dispose in an environmentally benign manner upto the satisfaction of concerned SPCB. All such costs involved in such operation shall be borne by Exporter and/or Importer.

Part 2 ? (To be filled in by Importer)

1. Name and Address:

2. Whether Authorisation it obtained in Form 2: Yes/No

3. Details of material to be imported

Sl. No.

Particulars

Six digit Code No.*

Purity expected

Quantity

Whether any special handling requirement?

*(Here enter as reference nomenclature, the equivalent six digit code No. from European Waste Catalogue EWC, issued pursuant to the Art. 1(a) of Council Directive 75/442/EEC on waste or its equivalent as the case may be).

4. Whether you have received such imported hazardous wastes in the form of raw materials in the past and if yes give details.

Sl. No.

Name of material

Country of Export

Year

Quantity in tonnes

5. Whether the importer has :

(a)

Adequate facility to handle the hazardous waste in the form of this raw material, if yes, furnish details

Yes/No

(b)

Adequate facility to handle the hazardous wastes generated by the use of such imported hazardous wastes in the form of his raw material

Yes/No

(c)

Requisite laboratory testing facility

Yes/No

6. Break-up of the imported material:

(a)

The total quantity applied for.....T

(b)

Out of (a) above, how much quantity after initial in-situ purification will be available as raw material.....T

(c)

Out of (b) above, how much quantity will be converted to be useful product or co-productT

7. Means of Transport (Road, Rail, Inland Waterway, Sea, Air) including country of export, transit and import, also point of entry and exit where these have been designated.

8. Information on special handling requirements including emergency provisions in case of accident

(Attach separate sheet)

9. Undertaking :

I hereby solemnly undertake that

1. The full consignment shall be cleared in one lot by arranging authorised transporter under my supervision with due prior intimation to the Board, district Collector and Police station and the imported material shall be admitted in an enclosure especially provided in the premises.

2. The material permitted shall be fully insured for transit as well as for any accidental occurrence and its clean-up operation.

3. The record of consumption and fate of the imported material shall be monitored and report sent to the Board every fortnight.

4. At every step of consumption of 25, 50, 75 and 100% of the imported material, the situation in the store shall be shown to the Board authority at our cost.

5. The hazardous wastes which gets generated in our premises by the use of imported hazardous wastes in the form of raw material, shall be treated and disposed of and only as per conditions of authorisation.

6. I/We agree to share the cost and joint to exporter in undertaking the measures as per undertaking given by Exporter at Part A, column No. 12(3) of this Form 6.

7. I am aware that there are significant penalties for submitting a false certificate/undertaking/disobedience of the rules and lawful orders including the possibility of fine and imprisonment.

Exporter

Signature.....

Designation.....

Date.....

Place.....

Importer

Signature

Designation.....

Date.....

Place.....

FORM 6-A

[See rule 13(8)]

(Format for maintaining records of hazardous waste imported and exported)

1. Name and address of the importer:
2. Date and reference number of issuance of permission to import hazardous wastes:
3. Description of hazardous waste:
 - (a)
Physical form:
 - (b)
Chemical form:
 - (c)
Total volume and weight (in kilograms):
 - (d)
Test report as per rule 13(6):
4. Description of storage, treatment and reuse of hazardous waste:
 - (a)
Date:
 - (b)
Method of storage:
 - (c)
Method of treatment and reuse (give details):

FORM 7

[See rules 13(5) and (6)]

TRANSBOUNDARY MOVEMENT OF WASTE-NOTIFICATION

1. Exporter (Name & Address)
3. Notification concerning (1): Notification N2
 - A. (i)
Single movement • B. Recovery operation •
Contact person: Tel:
 - (ii) General notification (multiple movements) •
Fax/Telex:
Reason for export:
- C. Pre-authorized recovery facility
(1) Yes • No •
2. Importer/Recycler (Name & Address)
4. Total intended number of shipments:
5. Estimated quantity (3):
Kg
Litres
Contact person: Tel:
Fax/Telex:
6. Intended date(s) or period of time for shipment(s)
9. Method(s) of recycling (4) :
R Code
Technology employed :
7. Intended carrier(s) Name, address
(2):
Contact person: Tel:
Fax
/Telex:
10. Means of transport (4):

11. Packaging type(s) (4):

8. Waste generator(s) Name, address

(2):

Contact person: Tel.:

Fax/Telex:

Site of generation and process:

12. (i)

Designation and complete chemical composition of waste (attach details)

(ii) Special handling requirements

13. Physical characteristics (4):

14. Waste identification code

BaselNo:

UN No:

Customs Code (H.S.):

OECD No.:

ITCC (HS):

Other (specify)

16. Y-Number (4):

17. H-number (4):

15. OECD classification (1): amber •

Red and • number:

Other* •

*(attach details)

18. (i) UN identification N2

UN shipping name

(ii) UN class (4):

19. Concerned States, code number of competent authorities, and specific points of entry and exit:

State of export

States of transit

State of import

20. Customs offices of entry and/or departure

Entry:

Departure:

21. Exporter's/Generator's declaration:

I certify that the information is complete and correct to my best knowledge. I also certify that legally-enforceable written contractual obligations have been entered into and that any applicable insurance or other financial guarantees are or shall be in force covering the trans boundary movement.

Name:Signature:

Date:

22. Number of annexes attached

FOR USE BY COMPETENT AUTHORITIES

23. To be completed by competent authority of -import

Notification received on: -transit (Basel)

Acknowledgement sent on:

Name of competent authority, Stamp and/or signature

24. Consent to the movement provided by the competent authority of (country):

Consent given on:

Consent expires on:

Specific conditions overleaf/annex

(1)

• Yes, see block 24

• No

Name of competent authority, Stamp and/or signature

(1)

Enter X in appropriate box (2) Attach list if more than one (3) Attach detailed list of multiple shipment (4) See Codes on the reverse.

LIST OF ABBREVIATIONS USED IN THE MOVEMENT DOCUMENT

Recovery Operations (Block 9)

R1. Used as a fuel (other than in direct incineration) or other means to generate energy

R2. Solvent reclamation/regeneration

R3. Recycling/reclamation of organic substances which are not used as solvents

R4. Recycling/reclamation of metals and metal compounds

R5. Recycling/reclamation of other inorganic materials

R6. Regeneration of acids or bases

R7. Recovery of components used for pollution abatement

R8. Recovery of components from catalysis

R9. Used oil re-refining or other reuses of previously used oil

R10. Land treatment resulting in benefit to agriculture or ecological improvement

R11. Uses of residual materials obtained from any of the operations numbered R1 to R10

R12. Exchange of wastes for submission to any of the operations numbered R1 and R11

R13. Accumulation of material intended for any operation numbered R1 to R12

MEANS OF TRANSPORT (Block 8-10)

PACKAGING TYPES (Block 16)

H NUMBER AND UN CLASS (Block 17)

R

= Road

T

= Train/Rail

S=Sea

A=Air

W

= Inland Waterways

1.

Drum

2.

Wooden barrel

3.Jerrican

4.

Box

5.

Bag

6.

Composite packaging

7.

Pressure receptacle

8.

Bulk

9.

Other (specify)

UN Class H. No. Designation

1

H1

Explosive

3

H3

Inflammable liquids

4.1

H4.1

Inflammable solids

4.2

H4.2

Substances or wastes liable to Air Spontaneous combustion

4.3

H4.3

Substances or wastes which, in W contact with water emit inflammable gases

5.1

H5.1

Oxidizing

PHYSICAL CHARACTERISTICS (Block 12)

5.2

H5.2

Organic peroxides

1.

Powdery/powder

5.

Liquid

6.1

H6.1

Poisonous

(acute)

2.

Solid

6.

Gaseous

6.2

H6.2

Infectious substances

3.

Viscous/paste

7.

Other (specify)

8

H8

Corrosives

4.

Sludge

9

H10

Liberation of toxic gases in contact with air or water

9

H11

Toxic

(delayed or chronic)

9

H12

Ecotoxic

9

H13

Capable, by any means, after disposal of yielding another material, e.g., leachate, which possesses any of the characteristics listed above

FOR USE BY CUSTOMS OFFICES

25. Country of Export/Dispatch or Customs Office of Exit

27. Stamps of Customs Offices of Transit Countries

The waste described overleaf has left the Country on:

Entry

Departure

Entry

Departure

Stamp:

Signature

26. Country of Import/ Destination

Name of Country:

Name of Country:

The waste described overleaf has entered the country on:

Stamp:

Entry

Departure

Entry

Departure

Signature:

FORM 7-A

[See rules 12(5) and 14(4)]

TRANSBOUNDARY MOVEMENT OF WASTE-MOVEMENT DOCUMENT

1. (i)

Exporter (name, address)

3. Corresponding to

4. Serial Number of shipment

Notification N2

Contact person: Tel:

Movement subject of

(2) Single notification ?

Fax /Telex:

general notification

?

(ii) Waste Generator (name, address)

(1):

8. Disposer (name, address):

Contact person: Tel:

Contact person: Tel:

Fax /Telex:

Fax /Telex:

Site of generation

Actual site of disposal:

2. Importer/Recycler (name, address):

9. Method(s) of recovery (4):

R Code:

Technology employed*:

Contact person: Tel:

Fax /Telex:

*(Attach details, if necessary),

5. 1st Carrier (Name, address):

6. 2nd Carrier (name, address) (4):

7. Last Carrier (name, address)

Registration N2:

Registration N2:

Registration N2:

Tel:Fax/Telex:Tel.:

Fax/Telex:Tel.:

Fax/Telex:

8. Identity of means of transport (3)

9. Identity of means of transport (3)

10. Identity of means of transport (3)

Date of transfer:

Date of transfer:

Date of transfer:

Signature of Carrier's representative

Signature of Carrier's representative

Signature of Carrier's representative

11. Designation and chemical composition of the waste

12. Physical characteristics (3):

13. Actual quantity

Kg.Litre

14. Waste identification code

16. Packing

Type (3):Number:

Bales No:OECD No.:

17. UN Classification:

UN No. ITC (HS):

UN shipping name:

Customs code (H.S.)

: Other (specify):

UN Identification No.:

15. OECD Classification (2) : Amber Red and Number:

UN class (3):

H Number

(3):Y No.:

Other

*(attach details)

18. Special handling requirements

20. Exporter' declaration:

I certify that the information in blocks 1 to 19 above is complete and correct to my best knowledge. I also certify that legally-enforceable written contractual obligations have been entered into, that any applicable insurance or other financial guarantees are in force covering the transboundary movement and that all necessary authorisations have been received from the competent authorities of the State concerned.

19. Actual date of shipment

Date:Signature:

Name :

TO BE COMPLETED BY IMPORTER/RECYCLER

21. Shipment received by Importer/Recycler

23. I certify that the recycling of the waste described above has been completed.

Quantity received:

Kg.

Litres

accepted

Date:

Name:

Signature:

rejected (x)

22. Shipment received at Recycler

Date:

Quantity received

Kg.

Litres

accepted

Name:

Date:

Signature & stamp:

Name:

Signature:

rejected (x)

Apporoximate date of recycler

Method of recycling

(1)

Attach list, if more than one (2) Enter X in appropriate box (3) See Codes on the reverse (x) Immediately contact Competent Authority (4) If more than three carriers, attach information as required in blocks 6 and 11.

LIST OF ABBREVIATIONS USED IN THE NOTIFICATION

Recovery Operations (Block 9)

R1 Used as a fuel (other than in direct incineration) or other means to generate energy

R2 Solvent reclamation/regeneration

R3 Recycling/reclamation of organic substances which are not used as solvents

R4 Recycling/reclamation of metals and metal compounds

R5 Recycling/reclamation of other inorganic materials

R6 Regeneration of acids or bases

R7 Recovery of components used for pollution abatement

R8 Recovery of components from catalysts

R9 Used oil re-refining or other reuses of previously used oil

R10 Land treatment resulting in benefit to agriculture or ecological improvement

R11 Uses of residual materials obtained from any of the operations numbered R1 to R10

R12 Exchange of wastes for submission to any of the operations numbered R1 to R11

R13 Accumulation of material intended for any operation numbered R1 to R12

MEANS OF TRANSPORT

PACKING TYPES

H NUMBER (Block 17) & UN CLASS (Block 18)

(Block 10)

(Block 11)

R = Road

T =Train/Rail

S = Sea

A=Air

W = Inland Water ways

1. Drum

2. Wooden barrel

3. Jerrican

4. Box

5. Bag

6. Composite packaging

7. Pressure receptacle

8. Bulk

9. Other (specify)

UN Class

H Number

Designation

1

H1

Explosive

3.

H3

Inflammable liquids

4.1

H4.1

Inflammable solids

4.2

H4.2

Substances or wastes liable to spontaneous combustion

4.3

H4.3

Substances or wastes which, in contact with water/emit inflammable gases

5.1

H5.1

Oxidizing

PHYSICAL CHARACTERISTICS (Block 13)

5.2

H5.2

Organic peroxides

1. Powdery/powder

2. Solid

3. Viscous/past

4. Sludgry

5. Liquid

6. Gaseous

7. Other (specify)

6.1

H6.1

Poisonous (acute)

6.2

H6.2

Infectious substances

8

H8

Corrosives

9

H10

Liberation of toxic gases in contact with air or water

9

H11

Toxic (delayed or chronic)

9

H12

Ecotoxic

9

H13

Capable by any means, after disposal of yielding another material, e.g., leachate, which possesses any of the characteristics listed above.

Y numbers (block 16) refer to categories of waste listed in Annexures I and II of the Basel Convention, as well as more detailed information can be found in an Instruction Manual available from the Secretariat of the Basel Convention.

25.

Specific conditions on consenting to the movement.

FORM 8

[See rule 7(3)]

MAKING OF HAZARDOUS WASTE CONTAINERS

Hazardous Waste

Handle with Care

Waste CategoryNo

.....

Compatible Group.....

TotalQuantity

.....

Date of Storage.....

Contents and State of the Waste:

Sender's Name & Address

Receiver's Name & Address

Phone

.....

Phone.....

TelefaxNo

TelefaxNo.....

Telex No

Telex No.....

ContactPerson

.....

Contact Person.....

In case of emergency please contact.....

Notes: -

1. Background color of label-fluorescent yellow.

2. The words "Hazardous Wastes" and "Handle with care" to be prominent and written in red.

3. Label should be of non-washable material.

FORM 9

[See rules 7(4) and (5)]

HAZARDOUS WASTE MANIFEST

(INFORMATION OF HAZARDOUS WASTE FOR DISPOSAL)

1. Occupier's Name & Mailing Address: (including Phone No.)

2. Occupier's Registration No.

3. Manifest Document No.

4. Transporter's Name and Address: (including Phone No.)

5. Type of Vehicle:

Truck

Tanker

Special vehicle

6. Transporter's Registration No.

7. Vehicle Registration No.

8. Designated Facility Name and Site Address:

9. Facility's Registration No.

10. Facility's Phone

11. Waste Description:

12. Total Quantity of Waste

m3

t

13. Consistency:

Solid

Oily

Semi-Solid

Tarry

Sludge

Slurry

14. Transport Description of Waste

15.

Containers

16. Total Quantity

17. Unit Wt/Vol

18. Waste Category No.

No.Type

19. Special Handling Instruction and Additional Information:

20. Occupiers Certificate: I hereby declare that the contents of the consignment are fully and accurately described above by proper shipping name and are categorised, packed, marked, and labeled, and are in all respects in proper condition for transport by road according to applicable national government regulations.

Typed Name and Stamp

Signature

MonthDayYear

21. Transporter's Acknowledgment of Receipt of Materials

Typed Name & Stamp

Signature

MonthDayYear

22. Discrepancy Note Space

23. Facility Owner or Operator's Certification of Receipt of Hazardous Waste

Typed Name & Stamp

Signature

MonthDayYear

FORM 10

[See rule 7(7)]

TRANSPORT EMERGENCY (TREM) CARD

1. Characteristics of Waste:

Sl.

No.

Type of Waste

Physical Properties

Chemical Constituents

Exposure Hazards

First-Aid Requirements

2. Procedure to be followed in case of fire:

3. Procedure to be followed in case of spillage/accident/explosion:

4. For expert services, please contact:

(i)

Name & Address:

(ii)

Telephone No.:

.....

(Name and Signature of Occupier)

[FORM 11]

[Inserted by S.O. 593(E), dated 20-5-2003 (w.e.f. 23-5-2003).]

[See rules 19(2) and 19(6)]

FORM OF APPLICATION FOR GRANT/RENEWAL OF REGISTRATION OF INDUSTRIAL UNITS POSSESSING ENVIRONMENTALLY SOUND MANAGEMENT FACILITIES FOR RECYCLING/RE-REFINING NON-FERROUS METAL WASTES/USED OIL/WASTE OIL*

(To be submitted to the Central Pollution Control Board in triplicate)

1.

Name and Address of the unit

2.

Name of the occupier or owner of the unit with designation, Tel/Fax

3.

Date of commissioning of the unit

4.

No. of workers (including contract labourers)

5.

Consent validity

Air (Prevention and Control of Pollution) Act, 1981

Valid upto

Water (Prevention and Control of Pollution) Act, 1974

Valid upto

6.

Authorisation under rule 5 of the Hazardous Wastes (Management and Handling) Rules, 1989

Valid upto

7.

Product manufactured during the last three years

(Tonnes/Year)

Name

(a)

(b)

(c)

8.

Raw material consumption during last three years

(Tonnes/Year)

Name

(a)

(b)

(c)

9.

Manufacturing process

Please attach manufacturing process flow diagram for each product(s)

10.

Water consumption

Industrialm³/day

Domestic m³/day

11.

Water cess paid upto

12.

Waste water generation

(a) as per consent m³/day

(b) actual m³/day (average of last three months)

Industrial Domestic

13.

Waste water treatment (please provide flow diagram of the treatment scheme)

Industrial

Domestic

14.

Waste water discharge

Quantity m³/day

Location

Analysis of treated waste water pH, BOD, COD, SS, O&G any other

15.

Air Pollution Control

(a) Please provide flow diagram for emission control system(s) installed for each process unit, utilities, etc.

(b) Details of facilities provided control of fugitive emission due to material handling, process, utilities, etc.

Fuel consumption

Stack emission monitoring results

Ambient air quality

Sl.

No., Name, quantity D/M No. Stack Emission mg/Nm Attach to PM SO₂Metals (pb, Zn)

Sl.

No. Location parameter mg/m SO₂, NO_x, SPM, Pb, any others

16.

Hazardous waste management

(a) Waste generation

(b) Details on collection, treatment and transport

(c) Disposal

(I) Please furnish details of the disposal facilities with the conditions laid down in the authorisation

(II) Whether facilities provided are in compliance with the conditions laid down in the authorization granted under rule 5 by the State Pollution Control Board

(III) Please attach analysis report of characterization of hazardous waste generated (including leachate test if applicable)

Sl.

No., Name, Category, Quantity

(last 3 years)

17.

Details of waste proposed to be acquired through auction/negotiation/contract or import as the case may be for use as raw material

1. Name

2. Quantity required per year

3. Waste listing & No. in Annexure VIII (List A)/ Annexure IX (List B) of Base] Convention (BC)

4. Hazard Characteristic as per Annexure III (BC)

18.

Occupational safety and health aspects

Please provide details of facilities provided

19.

Remarks

(I) Whether industry has provided adequate pollution control system/equipment to meet the standards of emission/effluent.

Yes/No

(II) Whether industry is in compliance with conditions laid down in the HW authorisation.

Yes/No

(III) Whether HW collection and Treatment, Storage and Disposal Facility (TSDF) are operating satisfactorily.

Yes/No

(IV) Whether conditions exist or likely to exist of the material being handled/ processed of posing immediate or delayed adverse impacts on the Environment.

Yes/No

(V) Whether conditions exists or is likely to exist of the material being handled/ processed by any means capable of yielding another material, e.g., leachate which may possess exotoxicity.

Yes/No

20.

Any other information

(I)

(II)

(III)

21.

List of enclosures as per rule 19(2).

Date.....

Place.....

Signature of Applicant.....

Designation.....

FORM 12

[See rule 19(13)]

Form For Filing Returns By Recyclers/re-Refiners Of Non-Ferrous Metal Wastes/used Oil/waste Oil

(To be submitted by recyclers/re-refiners to State Pollution Control Board/Committee by 31st January of every year)

1. Name and address of the recycler

2. Name of the authorised person and full address with telephone and fax number

3. Installed annual capacity to recycle non-ferrous metal wastes/used oil/waste oil (in MTA)

4. Total quantity of non-ferrous metal wastes/used oil (in MTA) purchased/processed/sold during the period from October-March/April-September

(i)

Quantity of wastes purchased from the manufacturers.

(ii) Quantity of wastes purchased from auctioneers.

(iii) Quantity of wastes obtained from any other source.

(iv) Quantity of wastes processed.

(v) Quantity of wastes sold.

5. Quantity and type material recovered from non-ferrous wastes/used oil/waste oil (in MTA)

6. Quantity of recyclable materials sent back

(i) the manufacturers

(ii) other agencies

Date.....

Place.....

Signature.....

Designation.....

FORM 13

[See rule 20(5)]

Form For Filling Returns Of Auction/sale Of Non-Ferrous Metal Wastes/ Used Oil/waste Oil

(To be submitted by waste generators/auctioneers to the concerned State Pollution Control Board/Committee by 31st January of every year)

1. Name and address of the waste generator/auctioneer

2. Total quantity of wastes auctioned/sold during the period

(i)

Non-ferrous Metal Wastes [indicate type and quantity in metric tonnes alongwith the name(s)/address(s) of registered recycler(s)].

(ii) Used oil/waste oil [indicate type and quantity in metric tonnes alongwith the name(s)/address(s) of registered recycler(s)

/ re-refiner(s).

*Delete whichever is not applicable.

Date.....

Signature.....

Place.....

Designation.....

[Inserted by S.O. 24 (E), dated 6-1-2000 (w.e.f. 6-1-2000).]

Related AI tags, queries and research notes

Translation